

Performance Work Statement (PWS) for Case Coordination Services

1.0 GENERAL

1.1 INTRODUCTION

The Administration for Children and Families (ACF), Office of Refugee Resettlement (ORR) seeks a contractor to develop and maintain case coordination programs to provide child welfare-based, third-party recommendations (TPR) regarding the care and release of Unaccompanied Alien Children (UAC) in ORR custody. The recommendations involve safe and timely reunifications with family, transfers, and placements, and identifying UACs with special or developmental needs and corresponding services.

UAC apprehended by the Department of Homeland Security (DHS) immigration officials are transferred to the care and custody of ORR. ORR promptly places an unaccompanied alien child in the least restrictive residential setting that is in the best interests of the child, taking into consideration danger to self, danger to the community, and risk of flight.

Residential care services begin once ORR accepts a UAC for placement from United States Customs and Border Patrol (CBP) and ends when the child is released from ORR custody, turns 18 years of age, or the UAC's immigration case results in a final disposition of removal from the U.S. ORR takes into consideration the unique nature of each child's situation and incorporates child welfare principles when making placement, clinical, case management, and release decisions that are in the best interest of the child.

1.2 OBJECTIVE

ORR ensures that the interests of the child are considered in all decisions related to the care and custody of UAC. ORR is guided by the principles that all UAC should be treated with dignity, respect, and special concern for their vulnerability; all UAC must be placed in the least restrictive setting appropriate to their age and special needs; and each UAC must be provided care and services free from discrimination based on race, religion, national origin, sex, disability, or political belief.

ORR intends to acquire the services of bilingual in English and Spanish case coordinators to provide child welfare based recommendations on individual UAC cases, particularly in the areas of making recommendations for transfer and release, identifying children with special needs and developing subsequent recommendations, staffing UAC cases, reviewing individual service planning, collaborating with care providers in providing community support and medical services, and troubleshooting special or unique cases. In order to maintain the integrity of their duties, organizations providing case coordinators may not have a conflict of interest with ORR and/or its UAC service providers (i.e., organizations involved in the care and maintenance of children in federal custody, organizations that would receive financial benefit as a result of their recommendations, etc.).

Case coordinators shall coordinate with Federal Field Specialists (FFS), who act as the local ORR liaison

with care providers and stakeholders, provide technical assistance and guidance to care providers on ORR policies and procedures, and make transfer and release decisions for UAC in their designated assignments.

ORR Headquarters is in Washington, D.C., where most federal staff are based other than the FFS are located nationally in areas of high apprehension and placement activity, including Phoenix, AZ; Los Angeles, CA; Miami, FL; Chicago, IL; El Paso, TX; Harlingen, TX; San Antonio, TX; Houston, TX; New York, New York; Portland, OR; Seattle, WA; and Washington, DC. As ORR expands the shelter network, providers may be located in other cities as well.

1.3 SCOPE OF WORK

The contractor shall develop and maintain regional and national case program(s) that provide child welfare-based recommendations on each UAC case, particularly in the areas of safe and timely release, identification of children with special needs, and development of corresponding recommendations, and placement recommendations. Child welfare best practice, as defined by ORR, aligns with a family-centered approach by ensuring UAC are released safely and timely to family members and other potential sponsors will provide a safe environment for the child and abide by the ORR Sponsor Care Agreement. Case Coordinators are non-governmental contractor field staff assigned to one or more care providers primarily to review UAC's cases and provide transfer and release recommendations to ORR staff. The Case Coordinator is responsible for integrating all areas of assessment from the Case Manager, Child Advocates, Clinician and Unification specialist, and other stakeholders into a release plan that will provide for the unaccompanied child's physical and mental well-being. After staffing and reviewing a case, Case Coordinators must agree with the release recommendation in accordance with the ORR policy guide. If there is a disagreement or a particularly complex case, then the case will be elevated to the ORR/FFS for further guidance. Case coordination services are provided across both ORR's standard network and the Influx Care Facilities (ICF). Many care providers are in Arizona, California, Florida, Illinois, Maryland, New Jersey, New York, Oregon, Texas, Virginia, and Washington, but they aren't limited to such areas. As ORR expands the shelter network, providers may be in other cities as well. ORR also opens ICFs as needed. Case Coordination services are provided both remotely and at provider sites, thus travel may be required.

1.4 BACKGROUND

In March 2003, ORR UAC Program (UACP) assumed the responsibility for the care and placement services for UAC who are in Federal custody because of their immigration status as mandated by Section 462 of the Homeland Security Act of 2002; P.L. No. 107-296. The program funds and designates placement and care for UAC referred by federal partners. The program ensures consideration of the child's best interest in care, placement, and release decisions. It implements placement decisions, develops facilities for care through grants and contracts, and utilizes multiple levels of care such as shelters, foster care, and therapeutic settings for UAC. The program reunifies children with families or sponsors in the United States and coordinates the repatriation of children with immigration authorities. In addition to providing services to UAC, the program also maintains information collection and conducts statistical analysis.

As of July 2025, ORR oversees a national network of over 171 care provider programs, including shelters, group homes, staff-secure/secure facilities, foster care programs, and residential treatment centers through

grants, contracts, and cooperative agreements. ORR care providers are required to follow cooperative agreements and are encouraged to pursue additional accreditation such Joint Commission on Accreditation, Council on Accreditation Commission on Accreditation of Rehabilitation Facilities or equivalent. They must also comply with ORR policies, protocols, and procedures, as detailed in their individual Cooperative Agreement/Statement of Work and ORR policies and procedures.

ORR identifies placement options for UAC according to their individual needs through this national network of care providers. Most care provider programs serve both UAC and domestic youth and maintain the two populations separately, but some smaller programs providing specialized care may serve the two populations together.

ORR is also responsible for the safe and timely release of UAC to vetted sponsors. Section 462 of the 2002 Homeland Security Act directs ORR to consider the following when making placement decisions: 1) the likelihood of a child's appearance before all hearings or proceedings; 2) protections from traffickers and others seeking to harm UAC; and 3) settings that reduce the possibility of a child endangering themselves or others (6 U.S.C. §279 (b.) 2. (A.).

1.5 TYPE OF CONTRACT CONTEMPLATED

Firm Fixed Price/ Time and Materials

1.6 PERIOD OF PERFORMANCE (POP)

The period of performance of this contract is a base period of 12 months from the contract award date, with three (3) subsequent 12-month option periods.

<u>June 30, 2026 – December 29 2030</u>
Base Period: June 30, 2026-June 29, 2027
Option Year 1: June 30, 2027-June 29, 2028
Option Year 2: June 30, 2028-June 29, 2029
Option Year 3: June 30, 2029-June 29, 2030
Option to Extend Services - 52.217-8: June 30, 2030-December 29, 2030

1.7 PLACE OF PERFORMANCE

The contractor shall perform services remotely, at the contractor site, and/or at the care provider location. In-person service requirements at care provider facilities are further outlined in sections 2.8.1 and 2.8.2.

Recognized Holidays:

New Year's Day	Labor Day
Birthday of Martin Luther King Jr	Columbus Day
Washington's Birthday	Veterans Day
Memorial Day	Thanksgiving Day
Juneteenth National Independence Day	Christmas Day
Independence Day	

In addition to the days designated as Federal holidays, the Government observes the following days:

- Any other day designated by Federal Statute
- Any other day designated by Executive Order
- Presidential Inauguration Day (National Capital Region only)
- Any other day designated by the President's Proclamation

When a U.S holiday occurs on a Saturday or a Sunday, the holiday is observed on the preceding Friday or following Monday, respectively. The Contractor shall refer to the Office of Personnel Management (OPM) website (currently at <https://opm.gov>, contact COR if necessary for the information) to see the observed dates for each holiday during a specific year. If submittal of any documentation (e.g., deliverables, submittals, etc.) deadlines fall on a holiday, the closest workday prior to the holiday shall apply as the deadline for submittal.

Above are federally recognized holidays, however, the contractor may be required to perform case coordination services on federal holidays and weekends during periods of surge or influx, as directed by the government. Holiday coverage shall be provided in accordance with the approved staffing plan.

1.8 APPLICABLE DOCUMENTS

- ORR Unaccompanied Alien Children Bureau Policy Guide. For reference, the full Policy Guide is currently available at <https://www.acf.hhs.gov/orr/policy-guidance/unaccompanied-children-bureau-policy-guide>. Contact the CO/COR for current location or for specific portions if necessary.
- Policy for Influx Care Facilities (See Section 7 of ORR Policy)
- ORR Field Guidance containing updates to standards. (Access will be granted to contractor after contract award.)
- The contractor shall comply with ORR Policy related to preventing, detecting, and responding to sexual abuse and harassment in accordance with ORR's Zero Tolerance Policy (See Section 4.5.3 of ORR Policy Guide referenced in Section 1.3.1.1)
- UC Manual and Procedures (UC MAP) provides procedures that operationalize ORR policy. The UC MAP is accessed through ORR's online case management system which will become available for contractor access after award. (Access to the UC MAP will be provided to the contractor at time of award) (<https://orr-uc-apps.acf.hhs.gov/s/map-document>)

Performance requirements are based on policy, regulations, and guidelines. The contractor is responsible for staying up to date with policy and regulatory changes and must adapt to the evolving nature of the working environment. The contractor is responsible for ensuring they are added to any relevant distribution lists and for ensuring attendance to all relevant meetings related to policy changes. The contractor shall notify the Contracting Officer's Representative (COR) in the event of any significant discrepancies between ORR policy guidelines and operations.

2.0 SPECIFIC REQUIREMENTS/ TASKS

2.1 TASK ONE – TRANSITION-IN SERVICES

The contractor shall perform all necessary steps to transition services under this contract.

The contractor shall ensure that there will be minimum service disruption to vital Government business operations and no service degradation during and after the transition. All transition activities will be completed within 90 calendar days after the start date of the contract. Transition activities consist of the program management, coordination, and execution of all activities necessary to provide uninterrupted and continuing case coordination services including the following:

- (a) Participate in planning sessions with the COR and FFS team and the incumbent contractor and provide updates to its transition plan(s) to address any specific changes because of these discussions.
- (b) Observe or “shadow” the incumbent contractor during the initial transition-in of the transition period to gain experience and familiarization with the tasks. The incumbent contractor will then reverse-shadow the new contractor during the last portion of the transition-in period to observe and ensure the new contractor has gained the experience and familiarization with completing the tasks to ensure an understanding of the technical and functional procedures performed under this contract.
- (c) Complete an inventory of all systems and database documentation, user manuals, and operations manuals including processes and procedures used by the incumbent contractor to accomplish operations, as well as an inventory of all transferable application source code/documentation, operational data, and network/systems within forty-five (45) calendar days after contract start. Report any potential gaps to the COR so that any deficiencies can be addressed before the completion of the transition period.
- (d) Work with COR to develop a plan for the delivery of reports and deliverables for this contract.
- (e) Coordinate with the incumbent contractor to complete the necessary forms for ORR to grant the new contractor the applicable access rights/permissions and User IDs to the systems, related applications, and servers needed to support the requirements and tasks in this contract.
- (f) Transition all production and operations information and procedures used by the incumbent contractor to accomplish operations and all tasks in this contract. This includes but is not limited to all policies, Standard Operating Procedures (SOPs), operational procedures and protocols; IT security procedures; jobs; programs; queries; files; and control documents for tracking, managing, and running all monthly/quarterly production jobs and control counts; detailed logic for all business rules, edit logic, database layouts, table structure, designs, stored procedure logic and utilities that are used by the incumbent contractor database administrators (DBAs), system administrators and operations staff.
- (g) Coordinate the transition of all reports, procedures/utilities, supplemental programs, files, and special queries used by the incumbent contractor's system to ORR.
- (h) Coordinate with the COR and the incumbent contractor to transfer to the new contractor any data subscriptions or software licenses that may be necessary to perform the activities outlined in this contract.
- (i) Provide ORR with any documentation support needed during the transition-in period.
- (j) All activities are required to be transitioned in a manner considering a prudent balance between timeliness, and cost efficiency and ensuring that all monthly core processes, schedules, application uptimes, and performance measures are maintained as well as met.
- (k) The contractor is encouraged to suggest innovative solutions taking into consideration its organizational capabilities and experience while aligning these capabilities with ORR requirements to execute a timely and cost-effective transition.

2.1.1 Subtask: Transition-In Plan

The Contractor shall develop a Transition-In Plan that describes all activities necessary to ensure continuity of operations and the maintenance of service levels from award until operational responsibility

is completely assumed. The Contractor's Transition-In Plan shall describe the technical approach, organizational resources, and management controls to be employed to meet the cost, performance, and schedule requirements to transition-in the services required by the contract. The Contractor shall provide the COR and CO a revised Transition-In Plan (original provided by all offerors in their proposals) within three (3) business days after the kick-off meeting. The Contractor shall provide additional revisions if requested and after receiving feedback from the COR – within (10) business days of receiving the COR request and comments. The Plan shall include a WBS in Microsoft Project format addressing deliverables, outcomes, schedule and work products. The Contractor shall provide periodic progress reviews to the COR with dates and frequency approved in the final Transition-In Plan.

The Transition-In Plan shall include:

- a. The technical approach;
- b. Planned transition activities to include hiring staff with appropriate background and training for the positions identified;
- c. Transition activity timelines and milestones;
- d. Transition resource requirements;
- e. Transition security requirements;
- f. Transition risks and mitigation or avoidance strategies;
- g. Transition communication plan; and
- h. Staff training.

2.1.2 Subtask: Transition-In Completion

The contractor shall provide a certification of readiness and documentation to support and demonstrate a full and accurate transition-in completion which shall be submitted in a format as determined by the contractor and COR.

2.2 TASK TWO- PROJECT MANAGEMENT

2.2.1 Subtask: Kick-off Meeting

- a) Within ten (10) business days of the award or as directed by the COR, the contractor shall conduct an orientation meeting and briefing through a conference call. The completion of this briefing will include, but is not limited to, the following:
- b) Introduction of both key contract and government personnel performing work, related to this PWS.
- c) Brief overview of contract administration and reporting.
- d) Review of the contractor's baseline Quality Control Plan (QCP).
- e) Discussion of substantive risks and issues that may impact the delivery of the project.
- f) Joint determination of the contents of a work plan to detail the specific activities and tasks to be associated with the period of performance specified in the PWS.
- g) Discussion of a plan to delivery to the contractor any Government-Furnished Equipment, Information, or Materials (GFE/I/M) unless specifically provided at contract award.
- h) Review by the contractor of its understanding of the work to be accomplished under this PWS to ensure that all parties have a common understanding of the work to be performed and of the

respective responsibilities and obligations of the parties.

- i) Review by both ACF/ORR and the contractor of the agreed-upon method to resolve, track, and report on risks and issues.
- j) During the Kick-off Meeting, ACF Office of Chief Information Officer (OCIO) staff will provide an overview of the ACF OCIO Intake Request Form used to formalize/start the ACF OCIO Governance Framework requirements. The contractor shall submit an ACF OCIO Intake Request Form, <https://help.acf.gov/hc/en-us/requests> within five (5) business days of the award to formalize/ start ACF OCIO Governance Framework requirements.

2.2.2 Subtask: Project Management Plan

The contractor shall work to ensure child welfare best practices are a primary focus of their project management plan. The contract management plan shall include welfare best practices as defined by ORR and align with a family-centered approach by ensuring UAC are released safely and timely to family and /or family friends who will provide a safe environment for the child and abide by the ORR Sponsor Care Agreement.

The contractor shall provide a Project Management Plan (PMP) that fully documents its management approach for the recruitment, delivery, and execution of contracted services. The contractor shall provide the COR with a revised PMP (original provided by all offerors in their proposals) within fifteen (15) business days after the kick-off meeting. Any PMP revisions shall be submitted to the COR within ten (10) business days of receiving comments from the government. The contractor shall update its PMP when there are program management changes and changes to the information required. The PMP shall describe internal policies and procedures to be used in managing the contract and resources associated with the contract. It shall provide an organizational chart of the contractor's line of business to be used in the performance of the contract. The PMP shall consist of a contract management plan and a communication plan. At a minimum, the contractor PMP shall include the listed below-listed requirements:

Contract Management Plan:

For purposes of accountability and transparency, the contractor shall prepare a Contract Management Plan describing the technical approach, organizational resources, and management controls to be employed to meet the cost, performance, and schedule requirements of this contract. The Contract Management Plan shall include a plan for travel, professional development, and training. Provide a narrative describing how the contractor will fully integrate the management of the elements of this contract. The Contract Management Plan shall be updated annually by the contractor and approved by the COR and Contracting Officer (CO), as required

Communication

The contractor shall facilitate Government and contractor communications by:

- (a) Using industry best standards and proven methodologies to track and document TO requirements and activities.
- (b) Allowing for continuous monitoring and evaluation by the Government.
- (c) Ensuring all support and requirements performed are accomplished in the TO.
- (d) Notifying the COR and FFS of any technical, financial, personnel, or general managerial problems encountered throughout the TO PoP.

e. Communications Plan:

Create and provide a Communications Plan that will be used to manage the portfolio of work defined in this contract and contain regular updates. Submit a draft within seven (7) business days of award and the final Communications Plan to the COR within ten (10) business days of receiving comments from the government. All communications will be managed by the COR.

(a) Communications Action Matrix: Create and provide a Communications Action Matrix that will be used to define details regarding the communications activities that are to be used to manage the work outlined in this TO.

- (1) The matrix shall be developed and maintained by the contractor's team.
- (2) The matrix shall designate the owners responsible for each task and subtask. Include name, email, and phone number.
- (3) Submit the matrix to the COR within ten (10) business days of receiving government comments on the matrix plan.
- (4) The matrix shall be updated quarterly and provided to the COR.

f. Project Work Plan

The contractor shall prepare a work plan that proposes timeframes for specific tasks to be performed, as described in the PWS. The contractor shall update the work plan annually within ninety (90) calendar days before the commencement of the following option year. Within seven (7) business days of the award date, a work plan meeting shall be conducted. The purpose of the initial meeting is for the contractor to obtain relevant background information from the COR (including ORR policies and procedures), review the PWS and timeline, and identify any potential challenges. The contractor shall present an initial work plan and time for addressing all required tasks/deliverables. The meeting may take place in Washington, DC, or through a conference call. Additional telephonic meetings may be scheduled as the need arises and to conform to ORR's program modifications either by legislation or design. The contractor shall provide a written summary of the initial meeting to the COR within two weeks of the contract award. The documentation shall include a brief synopsis of discussions that occurred along with any decisions reached and action steps agreed upon.

2.2.3 Subtask: Risk Management Plan

The contractor shall establish and maintain a Risk Management Plan to include a comprehensive Issue/Risk Log to track risks and assign mitigation strategies. Risks are potential future events that, if they occur, would have an impact on the project whereas issues are events that have occurred and must be resolved as soon as possible. The contractor shall perform an initial risk assessment with the COR as part of Transition-In, identifying and assessing the probability and impact severity of all foreseeable programmatic and technical risks, and developing mitigation strategies for high and medium exposure risks. The contractor shall maintain and update the Risk Management Plan on an ongoing basis and conduct risk reviews as part of the bi-weekly meeting with the COR.

The Risk Management Plan shall include how risks will be identified, managed, and mitigated. The responsibilities for monitoring and review shall be clearly defined. The monitoring and review processes shall encompass, when applicable, all aspects of the risk management process for the purposes of:

- (a) Ensuring that controls are effective and efficient in both design and operation.
- (b) Obtaining further information to improve risk assessment.

- (c) Analyzing and learning lessons from risk events, including near-misses, changes, trends, successes, and failures.
- (d) Detecting changes in the external and internal context, including changes to risk criteria and to the risks, which may require revision of risk treatments and priorities.
- (e) Identifying emerging risks.

The plan shall also include an Issue/Risk Log template that shall be used to track issues and risks and assign mitigation strategies to address each one. The contractor shall maintain the Issue/Risk Log and update it as needed. The Issue/Risk Log is an ongoing tool for the purposes of identifying, triaging, and managing risks. The Issue/Risk Log shall be monitored by the contractor at least weekly.

2.2.4 Subtask: Monthly Progress Reports

The contractor shall provide monthly progress reports that include monthly accomplishments, trend analysis, regional challenges and track expenditure of resources relative to projected cost and schedule limitations. In coordination with ORR and pending the content approval of the COR, the monthly status reports may take the form of a PowerPoint briefing to expedite the identification and resolution of issues. The contractor shall develop progress report content for review and acceptance by the government. The contractor shall submit the monthly status report to the COR no later than fifteen (15) calendar days following the close of the previous month. The COR may require the contractor to adjust report contents on an as-needed basis.

2.2.5 Subtask: Weekly Staffing Reports

Every Monday, the contractor shall submit a weekly staffing report (data as of the preceding Thursday) to demonstrate the hiring of Case Coordinators by location; identify newly hired case coordinators; and any staffing concerns or issues to comply with the requirements. In addition, the contractor shall notify the COR and FFS Manager(s) of any change in staffing assignment within 24 hours.

2.3 TASK THREE - SAFE AND TIMELY RELEASE PROCESS

- a) The contractor shall work with the ORR Care Provider case manager to make release recommendations, including recommendations for home study/post-release services as applicable. Additional responsibilities regarding oversight of the UAC's cases include a thorough and timely review of release requests, supporting documentation, regular meetings with case managers who are assigned to UAC with complex cases, recommendations, and follow-up for home studies, case consultations, and transfer recommendations on levels of care and services. Refer to the UAC portal for appropriate forms. The contractor shall make safe and timely release recommendations independent of the release recommendation of the care provider's case manager once a case manager has made a release recommendation.
- b) The contractor shall review release requests from the ORR Care Provider case manager within one (1) business day and develop recommendations to the designated ORR staff based on UAC Program policy and procedures, the care provider's clinical and case management team feedback and recommendations, the safety threshold criteria (utilized in child welfare systems), and the individual merits of each case.

- c) The contractor shall submit a release recommendation within two (2) business days after the home study results have been submitted to the UAC portal.
- d) The contractor shall work closely with care provider staff to identify missing information from release requests and related assessment documents as it relates to ORR policy and procedures.
- e) The contractor shall make recommendations regarding safety planning and child welfare recommendations.
- f) The contractor shall review pertinent documents related to each case submission (identity documents, child assessments, sponsor assessments, background checks, etc.)
- g) The contractor shall consult with the case manager to determine if the UAC is eligible for release prior to receipt of Fingerprint Check results.
- h) The contractor shall respond to requests for additional information from ORR staff regarding a home study referral within one (1) business day of request.
- i) For all TPR's, the Case Coordinator shall communicate with the Case Manager and the FFS that the Release Request has been completed and upload their recommendation into the UAC Portal.
- j) Case Coordinators shall prioritize UAC that are beyond their average length of care by ensuring timely completion of assessments and release recommendations. Case Coordinators shall work closely with the care provider and FFS to identify these cases, utilize TKPI, the Case Tracker, and the ORR's UAC Portal to identify these cases, and implement a priority plan to expedite a safe and timely release. Priority planning includes but is not limited to Case Coordinators; a) periodically reviewing all prior sponsorship options (*not* denied due to safety considerations) to assess changes in sponsor circumstances that may enable a reconsideration of sponsorship; b) ensuring the care provider is engaging Category 4 UC in *Mobility Mapping* and family-finding best practices; c) ensuring the care provider is establishing contact with all extended family members identified via mapping to request support with identifying undisclosed sponsorship possibilities. The contractor shall ensure the exchange of updates on information regarding the child, sponsor, and status of the home study between the ORR headquarters office, home study service provider, care provider, and FFSs throughout the duration of the home study process.
- k) The contractor, in consultation with care providers' clinical and case management staff and ORR, shall make recommendations for release with Post-Release Services according to ORR policy and procedures. Case Coordinators shall respond to requests for additional information from ORR staff regarding the referral within one (1) business day of request.
- l) The contractor shall increase case coordination coverage to provide a thorough and timely review as required by ORR policy and procedures of release requests that can be focused and further support areas of greatest need (e.g., influx, in-person, telephonic case consultation, virtual case management, ad-hoc case review, and discharge teams).

2.4 TASK FOUR - TRACKING AND MANAGEMENT OF COMPLEX CASES

The contractor shall input complex case information in the UAC portal and track the status of those cases through Tableau's TKPI. The case coordinators shall report weekly to field staff on how they are effectively assessing complex cases to assist in making release recommendations that are in the best interest of the child. Complex cases may include but are not limited to cases that involve significant medical and/or mental health concerns of the child, significant biopsychosocial circumstances of the sponsor, criminal history of the minor and/or sponsor, major behavioral issues exhibited by the minor,

immigrant/legal issues, trafficking concerns, history of physical, sexual, emotional abuse, etc. and home study cases.

The contractor shall provide ongoing consultation and assistance to care provider staff and work closely with the ORR staff related to individual assessment of cases for transfer of a child to alternate placements as is required per UAC policy.

While complying with UAC policies and procedures, the contractor shall utilize child welfare and mental health expertise; and knowledge of the ORR network of care to inform transfer recommendations.

The contractor shall provide case coordination coverage to support transfer submission recommendations in UAC portal within one (1) business day of request.

The contractor shall work with care provider staff and ORR to identify children that would benefit from transfer to long-term foster care setting, ensure appropriate case planning, and make corresponding recommendations.

The contractor shall work with care provider staff and ORR to identify children who require therapeutic services or placement and make corresponding placement recommendations based on child welfare and mental health expertise. The contractor shall continue to act in their full capacity and role for all children placed in Specialized Placements (RTC, secure, staff secure, therapeutic staff secure, and out-of-network placements) as assigned, which includes, but is not limited to, meeting with the UAC and the care provider staff to obtain updates on the progress of each child and determine with ORR and the care provider staff, whether the child needs continued treatment or would benefit from a less restrictive level of care.

The contractor shall work with the care provider and ORR staff to identify children who are potential victims of human trafficking as specified in the UAC Policy.

The contractor shall ensure FFS are made aware of potential trafficking victims for referral to the Office of Trafficking in Persons (OTIP). FFS will be responsible for referral to OTIP.

The contractor shall collaborate with clinicians and care providers, providing input and reviewing safety plans for potential victims of trafficking, regarding placement, telephonic contacts, and visitation; release recommendations; and placement in community-based settings as specified in UAC Policy.

2.5 TASK FIVE - STAFFING

The contractor shall provide a high level of expertise in child welfare, juvenile justice, and serving immigrant youth and families at the field level. The contractor shall recruit, train, and maintain a staff of Case Coordinators ensuring a caseload ratio of no more than 1:85 at a time at ORR programs. A standard ORR Facility is an ORR shelter that includes shelter care, secure care, staff-secure, a residential treatment center, or long-term foster care (does not include ICFs or Health and Human Services (HHS) Processing Centers (HPCs)).

An ICF is a type of care provider facility that is opened to provide temporary emergency shelter and services for UAC during an influx or emergency. ICFs may be opened on Federally owned or leased properties, in which case, the facility would not be subject to State or local licensing standards; or, at facilities otherwise exempted by the State licensing authority.

While not inclusive of all case coordination daily activities, overarching responsibilities of Case Coordinators include:

- Providing timely review and assessment of potential sponsors and UAC to make recommendations for release to ORR in conjunction with the Case Manager.
- Assisting ORR in ensuring that children are placed in the least restrictive setting while receiving all appropriate services.
- Meeting with individual UAC and care provider staff at designated ORR-funded care provider sites.
- Providing targeted child welfare-based assistance to care provider staff, as directed by ORR staff.
- Making recommendations for home study and post-release services for at-risk children.
- Making placement recommendations for children who require more specialized levels of care, such as long-term foster care and residential treatment centers.
- Participating in collaborative meetings with local stakeholders; and
- Participating in staffing of cases with care providers and designated ORR staff.

The contractor shall provide a monthly summary report of all case coordination activities at ICFs, including timely reviews, home study and post-release recommendations, and participation in case staffing. Reports shall include quantitative data (case counts, timelines, participation rates) and qualitative notes (issues, barriers, corrective actions). Reports are due to the COR no later than 15 calendar days following the close of the previous month.

Historically, ORR has experienced periods when a higher number of referrals of UAC are received than at other times of the year. These periodic intervals are called an “influx.” Annually, ORR reviews contingency plans based on actual and anticipated UAC referral numbers to monitor available resources in light of expected needs. During an influx, ORR may not have sufficient bed space available within its licensed care provider network to place UAC. In this situation, ORR arranges for the use of ICFs to provide supplemental bed capacity. Because of the emergency nature of ICFs, they may not be licensed or may be exempted from licensing requirements by State and/or local licensing agencies.

At an ICF, the contractor shall provide a caseload ratio of no more than 1:85 cases to one Case Coordinator. The contractor shall have the capability and capacity to scale up and down as determined by ORR. Case Coordination services at an ICF site shall be virtual, telephonic, and onsite monthly to meet case management and site requirements. ORR may request additional case coordination support for ICFs.

Case Coordinators assigned and/or deployed to an influx site will staff complex cases as determined by Care Providers and FFSs. The contractor shall carry out all required main responsibilities as stipulated in the PWS. It is recognized that centralized teams may be utilized for providing timely review, assessment, and recommendation of release requests to ORR to ensure the release of UAC to a sponsor promptly once

it is determined that the sponsor is able to provide for the child's safety and well-being.

The contractor shall ensure that all Case Coordinators utilize ORR data sources including, but not limited to, Tableau, Throughput Key Performance Indicators (TKPI), and any other designated ORR data tools to inform staffing conversations, generate required reports and or ad-hoc reports and elevate trends to ORR and FFS.

2.5.1 Subtask: Staffing Plan

The contractor shall describe proposed staffing, including structure and level of expertise sufficient to fulfill contractual responsibilities in the Case Coordination program in an updated staffing plan within thirty (30) calendar days of contract award (original provided by all offerors in their proposals).

The contractor and COR will establish clear lines of reporting and communication as per ORR's policies and procedures or as needed for the efficient operation of the program after discussion between the COR and contractor. The contractor will maintain a clear and independent supervisory structure with their organization for all personnel issues including, among others, evaluation of job performance, designation of work responsibilities, work schedules, personal and sick leave, and professional development, etc.

In the event ORR determines that the contractor's staffing levels or personnel performance do not conform to contract requirements, ORR will advise the contractor in writing and the contractor shall have thirty (30) calendar days to remedy the identified deficiencies. If, after consultation with the contractor, ORR has determined the actions taken do not remedy the concerns and that the personnel are incapable of carrying out the responsibilities outlined in the contract, ORR shall notify the CO for appropriate contractual action. Any such determination by ORR will be made in a consultative manner with the contractor and the CO and should be coordinated and carried out within thirty (30) calendar days of the request. Replacement of the identified contractor personnel, if necessary, shall also be coordinated in consultation with ORR.

The contractor shall maintain case coordination operations for full service of the permanent network coverage Monday-Friday 8:00AM-5:00PM local time. The contractor shall only provide weekend and holiday case processing support via a Remote Ops Team during surge/influx periods upon the release of additional beds. Weekend and holiday support will be provided at the direction of the government. The contractor is responsible to maintain overall coverage of task assignments. However, special arrangements may be made with the COR for special agency holidays and events per the Contractor's policies. In the event that a case coordinator is unable to cover his/her region, a backup must be assigned for the duration of his/her absence. The contractor is responsible to notify ORR staff of coverage plan for any staff absence.

The contractor shall provide the necessary backup coverage in developing their staffing plan to ensure proper coverage of staffing during vacation, leave, replacement of staff, etc. The contractor is responsible for notifying ORR staff in writing of a coverage plan for any staff absence.

2.5.2 Subtask: Scale Up/Scale Down:

It is estimated that case coordinator services will be requested for up to 10,000 bed capacity for UAC (inclusive of influx sites) (5,000 for standard operations, an additional 1,000 beds will be released should

the need arise for influx/surge in order to reach a total capacity of 10,000. Capacity may vary depending on migration patterns. The contractor shall commence scale-up and scale-down activities at the direction, coordination, and approval of the CO, but on advice of the COR. The contractor shall submit a plan to address fluctuations in capacity within fourteen (14) calendar days, for its implementation within forty-five (45) calendar days of approval to increase and thirty (30) calendar days to decrease their operations under this award. The areas and/or projected bed capacity are subject to change should there be additions to the ORR shelter network. Upon reaching 85% of 5,000 for three (3) calendar days, an additional 1,000 beds will be released in (5) five increments for a total of 5,000 additional beds. The areas and/or projected bed capacity are subject to change should there be additions to the ORR shelter network.

ORR may activate and open an ICF when ORR's operational capacity is at or exceeds 85% for a period of three (3) calendar days. Operational capacity refers to the net bed capacity of ORR's State-licensed shelters and transitional foster care programs. ORR ceases placements of UAC at an ICF if operational capacity drops below 85% for a period of at least seven (7) consecutive days. ORR provides for the orderly transfer of UAC from an ICF provided operational capacity is below 75% and the transfer of UAC from ICFs into ORR's licensed permanent network does not raise operational capacity above 75%.

The contractor shall designate Supervisory Case Coordinators responsible for overseeing staff, serving as point of contact for concerns/feedback from UAC, sponsors, and stakeholders regarding the contractor's services, and provision of case coverage. The Supervisory Case Coordinators shall assist the Project Manager with work assignments and other team coordination needs as established in the position description.

The COR/ORR will work in consultation with the contractor to ensure locations and workloads are appropriate. ORR reserves the right to modify the number and location of Case Coordinators, Supervisory Case Coordinators, and Direct Operation Coordinators as well as staffing requirements based on the shifting demands of the program.

2.5.3 Subtask: Case Coordinator

The Case Coordinator roles shall have a master's degree in social work or a social science-related discipline and at least two (2) years of demonstrated post-graduate child welfare experience or at least three years of demonstrated post-undergraduate child welfare experience. Alternatively, Case Coordinators shall have a bachelor's degree in social work or a social science-related discipline and at least five years of demonstrated child-welfare experience, or a non-qualifying bachelor's degree and at least seven (7) years of demonstrated post-degree child-welfare experience. It is preferred but not required that Case Coordinators be bilingual in English and Spanish, to review case documents and interview children. Prior experience working with immigrant youth and families is highly preferred. Experience with Tableau is highly preferred.

2.5.4 Subtask: Key Personnel

ORR has designated the following positions as Key Personnel:

1. Project Manager and Deputy Project Manager
2. Supervisory Case Coordinator
3. Direct Operations Coordinator

Project Manager/Deputy Project Manager

The contractor shall provide one (1) Project Manager and one (1) Deputy Project Manager. The Project Manager and Deputy Project Manager shall maintain a high level of expertise in child welfare, juvenile justice, and serving immigrant youth and families at the management level. Specifically, the Project Manager and Deputy shall have a master's degree or higher in Social Work, a social science-related discipline, or background in law, and at least five (5) years of demonstrated child welfare experience. Experience working with immigrant youth and families and underserved populations is strongly encouraged. The hire of the Project Manager and Deputy Project Manager, or any replacements thereof, must be approved in writing by the COR.

The Project Manager shall be the contractor's primary point of contact for COR and shall oversee staffing, management, and reporting. Based on direction from ORR, the Project Manager will direct work priorities to maintain a professionally managed program. The Project Manager or supervisory designee shall conduct annual site reviews of all Case Coordinators to evaluate Case Coordination compliance with the Contract, ORR policy and procedures, timely performance of tasks and deliverables, collaboration with ORR and stakeholders, and training needs. Summaries and findings from site reviews shall be incorporated into the quarterly performance report. Copies of site visit reviews shall be provided to the COR upon request. The contractor shall review the Project Manager Position description with the COR and obtain approval before advertising and disseminating job announcements.

Supervisory Case Coordinator

The hire of the Supervisory Case Coordinators and Direct Operations Case Coordinator, or any replacements thereof, must be approved in writing by the COR. Supervisory Case Coordinators shall have a Master's degree in social work (MSW) and five (5) years of postgraduate direct service delivery experience working with youth and trauma-informed care; or a Master's degree in psychology, counseling, or other relevant behavioral science in which clinical training and experience is a program requirement. Supervisory experience is required. Licensure preferred.

Direct Operations Coordinator

Direct Operations Coordinators shall have a Master's Degree in Social Work social science-related discipline and five years of demonstrated post-graduate child welfare, case management, social service, and/or mental health professional experience, or a Bachelor's degree in Social Work, or social science-related discipline and eight years of demonstrated post-graduate child welfare, social service, case management and/or mental health professional experience or a non-qualifying bachelor's degree and at least ten (10) years of demonstrated post-degree child welfare experience. Bilingual in English / Spanish and Supervisory Experience is also preferred.

2.5.5 Subtask: Key Personnel Substitution

The contractor shall not replace any personnel designated as Key Personnel without the written concurrence of the CO. Before utilizing other than personnel specified at the time of proposal submission, the contractor shall notify the Government CO and the COR. This notification shall be no later than ten (10) calendar days in advance of any proposed substitution and shall include justification including resume(s) and labor category of proposed substitution(s) in sufficient detail to permit evaluation of the impact on the contract performance.

2.6 TASK SIX - DUTY STATIONS WITH CARE PROVIDERS AND ORR STAFF

The contractor shall provide case coordinator coverage to support regular visits, to care providers that are located outside ORR's main duty station areas.

2.6.1 Subtask: Weekly Visits

The contractor shall make, at a minimum, weekly visits to all care providers within their assigned local duty station to meet with care provider staff and to staff all cases. All weekly visits shall be captured and submitted in a weekly report to the assigned FFS Supervisor and FFS. The project manager shall compile all weekly reports for submission to the COR.

The contractor's designated duty station shall be located within proximity of an ORR-funded care provider facility, as approved by the COR in consultation with the contractor, taking into consideration the number and location of care providers within the Case Coordinator's designed area.

Case Coordinators shall collaborate on weekly case staffing meetings with care providers and designated ORR staff, remotely, in-person or in the event of a surge/influx, at the care providers' facility. Case Coordinators may participate in weekly case staffing by telephone or in-person when the care provider is not located within the Case Coordinator's local duty station, as defined by the COR in consultation with the contractor.

The contractor shall provide coverage for weekly case staffing meetings with care providers and designated ORR staff at remotely and at ICFs, as well as for new programs.

2.6.2 Subtask: Monthly Visits

The contractor shall make, at a minimum, monthly visits to Community Based Care providers to which they are assigned and meet with care provider staff to address complex cases. A monthly report shall be completed and submitted to the assigned FFS and their supervisor. This report shall include interviews with the UAC, any staff, and if applicable, family foster parents. The project manager shall compile these monthly reports for submission to the COR.

The contractor shall make, at minimum, monthly visits to care providers located outside each of their assigned local duty stations to meet with care provider staff and to staff cases. The frequency of such site visits shall be determined by the COR in consultation with the contractor (weekly staffing with the programs must occur either on-site or telephonic), taking into consideration the number and location of care providers within the Case Coordinator's designated area. Each monthly site visit shall be documented in a monthly report and submitted to the COR and other ORR staff as directed by the COR.

Case Coordinators shall perform other duties as established in the list of roles and responsibilities developed between the COR and the contractor, and as per ORR/UACP policy and procedures.

2.7 TASK SEVEN: TRAINING AND ASSISTANCE

The contractor shall develop a standardized training curriculum that is approved by ORR. All case coordinators shall complete this training prior to any case assignments. The training curriculum shall include at a minimum, the training outlined in UAC Policy Guide making safe release recommendations on behalf of UAC, training on transfer recommendations, ORR policy and procedures, relevant federal and state statutes, and settlement agreements, interviewing children, case document review standardization, utilization of Tableau and other relevant ORR databases, overview of ORR's different of levels of care and state licensing, analyzing and interpreting data and any other relevant trainings.

The training curriculum shall be submitted to ORR COR with the Contract Management Plan. The contractor shall update the training curriculum to align with ORR's most recent policies and procedures. The contractor shall make any subsequent updates as requested by the ORR COR.

The contractor shall be responsible for developing systems to identify areas in which staff or case coordinators need training or technical assistance and for the development and implementation of corresponding plans to address any training or technical assistance needs.

The contractor shall receive child welfare best practice training annually. All child welfare best practice training must receive prior approval from ORR before participating. Upon completion of training, the contractor shall verify that all required staff completed said training.

The contractor shall ensure that all personnel with access to the UAC Portal complete the following training prior to receiving access to the database at least once a year. Trainings include:

- DISA Cybersecurity Awareness Training
- HHS-ACF PII Training
- The contractor shall ensure that all personnel with access to the UC Portal review and sign the Rules of Behavior

Links to training will be provided by the COR and as needed.

The contractor shall save the completion certificates and Rules of Behavior signed attestation in the personnel file and submit copies to the COR upon request.

The contractor shall maintain a log of the training activities. At a minimum, the information to be logged shall include the following: name of the training, completion date of the training, and names of employees who attended the training.

2.8 TASK EIGHT - DATA COLLECTION, TRACKING, AND REPORTING

In consultation with the COR, the contractor shall gather data regarding issues that impact their ability to conduct Case Coordination duties as outlined in the contract, UAC Policy Guide and the ORR/UCP policy and procedures. Findings shall be reported to the COR as they occur and summarized in the monthly report. The Case Coordination program shall share trends that impact the ability to make timely case recommendations and recommend corresponding solutions to ORR. The Case Coordination program shall

incorporate ORR feedback in updating and iteratively improving the reporting process and content. Identified trends will be included in the monthly report.

The contractor shall provide appropriate staffing to respond to ORR's requests for increased access to ORR Case Coordination data; pathways for automated sharing of information between case coordination and ORR data systems; increased reporting from case coordination to ORR stakeholders and headquarters and further enhancing case coordination toolset to provide ORR stakeholders with greater visibility of in-progress cases. Any automated data-sharing tools will follow industry best practices for secure data transfer.

Case Coordinators shall receive training and orientation on ORR's database/system of record and Tableau TKPI, within ten (10) calendar days of onboarding. The contractor shall track and submit a list of names and weekly updates of new staff who need UAC portal access. Case Coordinators shall be required to utilize the ORR/UCP for processing TPRs, as well as other functions that are incorporated into the system. ORR may request reports on an ad hoc basis depending on the need of the program. The COR and contractor shall discuss the workload to ensure appropriate staffing support is provided.

The contractor shall provide data support and staffing for the increasing requests for ad hoc reports and data queries. The data support and staffing shall consist of the following positions: Data Analyst, Sr. Data Analyst, and Data/Admin support.

2.9 TASK NINE - BACKGROUND INVESTIGATION

Before hire, unless prohibited by state law, contractor staff who have direct access to UAC must complete and pass background checks required in UAC Policy Guide Section 4.3.3 - Employee Background Investigations. ORR-compliant background checks must include:

- 1) An FBI fingerprint check of national and state criminal history repositories;
- 2) Child Abuse and Neglect (CA/N) checks with the staff's State(s) of U.S. residence for the last five years;
- 3) Sex Offender Registry Checks conducted through the U.S. Department of Justice National Sex Offender Public Website (www.nsopw.gov)
- 4) All state licensing required background check criteria applicable in the state of service provision; and
- 5) Complete background re-investigations at a minimum of every five years of the staff/contractor/volunteer's start date or last background investigation update.

Contractor staff must undergo screening through the suitability determination investigation process if required based on the subject's role, tier, and a determination that they are acting for or on behalf of ORR. The suitability assessment for the position is completed by the U.S. Department of Health and Human Services' Program Support Center (PSC), which has delegated authority to make this determination (see 5 CFR 731.103(a)).

All required criminal history background and C/AN checks will be initiated by the contractor to the state/territorial authorities where the applicant has resided during the past 5 years; residency is determined by the subject establishing an address within the state or territory. ORR will ensure receipt of background checks for ICF staff. HHS will process HSPD-12 PIV background investigations for all contractor staff;

ORR, through the COR, shall provide instructions for completing this process. All costs shall be borne by HHS; however, the contractor will be responsible for maintaining and tracking all applicant submissions, coordinating with the HHS eQIP and/ or eApp coordinator, and ensuring compliance with the PWS, ORR Policy and Field Guidance and HSPD-12 requirements. The contractor shall also maintain verification of CA/N for each employee and provide those verifications upon receipt to the COR. The contractor shall provide the COR daily, during initial mobilization and ramp-ups, the status of all background and CA/N checks. The prime contractor must maintain a roster of active, demobilized, and terminated employees (including for subcontractors) related to the ICFs. This list must be made available to the COR upon request.

The contractor shall ensure that all its personnel conduct their work professionally and responsibly. All contractor personnel working on the Government's site shall abide by the staff code of conduct laid out in UAC Policy Guide. Staff is mandated to sign and follow Appendix E- Standards of Conduct to refrain any or all actions including from making comments/statements that in any way mislead, threaten, or impact the wellbeing and safety of UAC.

The contractor shall develop the acknowledgment documents described below, train their employees on these items, and ensure that all personnel mobilized hereunder sign the following statements, before working with children, acknowledging that:

- 1) Staff affirms and attest under penalty of perjury that staff has never been the subject of any Child Abuse and Neglect investigations, substantiated or unsubstantiated, and/or arrested for a crime involving child abuse and/or neglect in any state; and is currently not involved in any criminal or civil proceedings pending a disposition, nor been found guilty or entered a plea of nolo contendere or guilty to any offenses relating to child abuse, child neglect, or exploitation of children and/or the failure to report such abuse;
- 2) Staff is mandated to report suspected child abuse and neglect following state mandatory reporting laws and ORR policy.
- 3) Staff is mandated to follow the ORR fraud scheme policy and procedures found in the UAC Policy Guide.

2.10 TASK TEN - RECORDS MANAGEMENT

This section applies to all contractors whose employees create, work with, or otherwise handle Federal records, as defined below, regardless of the medium in which the record exists. The contractor company providing services to ACF/ORR is responsible for securing all federal records created and maintained on behalf of ACF/ORR. If the contract is set to expire, the contractor is responsible for providing ACF/ORR the following:

- All paper/analog originals records; and
- All electronic versions of records with metadata preserved uploaded to a cloud-based system, or in hard drives.

“Federal record” as defined in the Federal Records Act, 44 U.S.C. § 3301, includes all recorded information, regardless of form or characteristics, made or received by a Federal agency under Federal law

or in connection with the transaction of public business and preserved or appropriate for preservation by that agency or its legitimate successor as evidence of the organization, functions, policies, decisions, procedures, operations, or other activities of the United States Government or because of the informational value of data in them.

Within the definition of a Federal record, “recorded information” refers to all traditional forms of records, regardless of physical form or characteristics, including information created, manipulated, communicated, or stored in digital or electronic form.

Federal records include:

- Agency records, which are records generated by the federal agency directly, as opposed to those generated by a Grantee or Contractor; and
- Records created, received, or maintained by a Grantee or Contractor pursuant to a grant or contract.

Federal records do not include:

- Library and museum material made or acquired and preserved solely for reference or exhibition purposes; or
- Duplicate copies of records preserved only for convenience.

Records may contain sensitive information and may be subject to ongoing litigation holds. All paper and electronic records (true identical copies of the information) are required by the Office of General Counsel (OGC) to be retained in a secure and sensitive manner for the duration of the litigation hold. All records subject to litigation holds must remain in ACF/ORR’s custody, and the information must be accessible and retrievable as necessary. Immediate actions should be taken to avoid the unauthorized destruction of records.

Federal records must be protected against loss, unauthorized destruction or alteration, and illegal removal from HHS to ensure adequate documentation of organization, functions, policies, decisions, procedures, and essential business transactions. The unauthorized removal, concealment, falsification, mutilation, and/or disposition of official records is prohibited by law and is subject to penalty. The penalties for the unlawful or accidental removal, defacing, alteration, or destruction of federal records or the attempt to do so, include a fine, imprisonment, or both. (18 U.S.C. §§ 641 and 2071).

All Contractors whose employees create, work with, or otherwise handle Federal records, as defined in Section B, regardless of the medium in which the record exists.

2.10.1 Records Requirements:

- a. Contractor shall comply with all applicable records management laws and regulations, agency policies, and National Archives and Records Administration (NARA) requirements, including but not limited to:
 - (9) The Federal Records Act (44 U.S.C. chapters. 21, 29, 31, 33);
 - (9) NARA regulations at 36 CFR Chapter XII Subchapter B;

- (9) NARA Digitization Regulations for Temporary Records (36 CFR 1236 Subpart D);
- (9) NARA Metadata Requirements (36 CFR 1236 Subpart E);
- (9) All applicable provisions of the Privacy Act of 1974, 5 U.S.C. 552a, as amended, including those related to the preservation of all records, regardless of form or characteristics, mode of transmission, or state of completion;
- (9) All application provisions of the Freedom of Information Act (FOIA), 5 U.S.C. 552, as amended;
- (9) All applicable policies and procedures in ORR's Unaccompanied Alien Children Bureau Policy Guide, Manual of Procedures, and applicable ORR Field Guidance; and
- (9) All applicable policies in the HHS Policy for Records Management (HHS-OCIO-CDO-2024-02-001).
- (9) Applicable provisions of other federal regulations, including but not limited to, 45 CFR 410 (ORR Foundational Rule), 45 CFR 422 (Standards to Prevent, Detect, and Respond to Sexual Abuse and Sexual Harassment Involving Unaccompanied Children Interim Final Rule), 45 CFR 412 (Investigations of Child Abuse and Neglect Rule).
- b. In accordance with NARA regulations at 36 CFR 1222.32, all data created for Government use and delivered to, or falling under the legal control of, the Government are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33, FOIA, and the Privacy Act, and must be managed and scheduled for disposition only as permitted by statute or regulation.
- c. In accordance with NARA regulations at 36 CFR 1222.32, Contractor shall maintain all records that are: created for Government use; created while performing the contract; delivered to the Government; and under the legal control of the Government and must be managed in accordance with Federal law. Electronic records and associated metadata must be accompanied by sufficient technical documentation to permit understanding and use of the records and data.
- d. Contractor is responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Records may not be removed from the legal custody of ORR or destroyed, except for in accordance with the provisions of the agency records schedules, in accordance with direction from ACF/ORR, and with the written concurrence of the Head of the Contracting Activity. Prior to concurrence, contracting officer must consult with ORR Records and Information Management. Willful and unlawful destruction, damage, or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2071. Contractor must report any unlawful or accidental removal, defacing, alteration, or destruction of records to ORR.
- e. The Contractor shall immediately notify the appropriate Contracting Officer upon discovery of any inadvertent or unauthorized disclosures of information, data, documentary materials, records, or equipment. Upon notification, contracting officer shall immediately alert ORR's Records and Information Management (RIM) team. Disclosure of non-public information is limited to authorized personnel with a need-to-know as described in the contract. The Contractor shall ensure that the appropriate personnel, administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information, data, documentary material, records and/or equipment is properly protected.
- f. The Contractor shall not remove material from Government facilities or systems, or facilities or systems operated or maintained on the Government's behalf, without the express written permission of the Head of the Contracting Activity. Contracting officer must consult with ORR RIM team prior to granting said permission. When information, data, documentary material, records and/or equipment is no longer required, it shall be returned to ORR control or the Contractor must hold it until otherwise directed. Items returned to the Government shall be hand

carried, mailed, emailed, or securely electronically transmitted to the Contracting Officer. COR must consult/collaborate with RIM team to ensure transfer of records is compliant with ORR/FRC policy. Destruction of records is EXPRESSLY PROHIBITED unless in accordance with Paragraph (4).

- g. The Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (sub-contractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under, or relating to, contracts. The Contractor (and any sub-contractor) is required to abide by Government and ORR guidance for protecting sensitive, proprietary information, classified, and controlled unclassified information.
 - h. The Contractor shall not create or maintain any records containing any non-public ORR information that are not specifically tied to or authorized by the contract.
 - i. The Contractor shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974 or that which is generally protected from public disclosure by an exemption to the Freedom of Information Act.
 - j. ORR owns the rights to all data and records produced as part of this contract. All deliverables under the contract are the property of the U.S. Government for which ORR shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest. If requested, data must be available to HHS within one (1) business day from request date or within the timeframe specified otherwise. In addition, the data must be provided at no additional cost to HHS. Any Contractor rights in the data or deliverables must be identified as required by FAR 52.227-11 through FAR 52.22720.
 - k. The Contractor is required to ensure the proper storage, safeguarding, organization, digitization (as applicable), transfer (as applicable), and packaging of *all* records generated by their staff, such as youth care workers, compliance managers, teachers, background check specialists, case managers, clinicians, and medical staff.
- (2) UAC Casefiles (defined in the ORR Unaccompanied Alien Children Bureau Policy Guide) specifically must be stored in locked file cabinets in climate-controlled spaces with policies in place to prevent unauthorized access, destruction, theft, or contamination. Spaces where records are stored must have two layers of protection including locked file cabinets that are within locked rooms only accessible by authorized personnel. A UAC casefile is closed after the 30-day follow-up call is completed. Once a UAC casefile is closed, all medical, clinical, and case management documentation must be compiled into one paper file and one electronic file per UAC Policy. Paper casefiles must be stored in standard letter-sized banker boxes (L x W x H = 16.25 x 12.75 x 10.25 inches) and filed based on the date of discharge from the program. Each box of UAC casefiles must include a manifest listing the contents of each box including the name, alien number, date of admittance, date of discharge, and name of care provider for each UAC.
- (2) Non-case file records must all be maintained by grouping and storing like records together in boxes. Manifests for non-casefile records should include the record type and date range (if applicable).
- l. The Contractor is responsible for preparing all records for shipment upon ORR's request, as coordinated by the ORR RIM Team. All boxes of original records must be placed on standard pallets (L x W = 48 x 40 inches), eight (8) boxes per row stacked alternately per row until the pallet is five (5) rows high, with the total dimensions of the loaded pallet not to exceed L x W x H = 48 x 40 x 55.25 inches. Loaded pallets must then be wrapped with plastic film to secure the boxes to the pallet.

- m. Contractor should package closed, completed casefiles in standard letter-sized banker boxes with lids with the following dimensions: L x W x H = 16.25 x 12.75 x 10.25 inches.
- n. Closed case files must include all UAC records, including but not limited to case management, intake and discharge, placement, legal services, incident reports, medical, clinical, and educational records that are collated into one comprehensive case file.
- o. Casefiles should be organized in boxes chronologically based on date of discharge from the program.
- p. Each box should include a manifest/file inventory that lists the contents of each box including the name, alien number, box number, and date of discharge for each case file that is included in each box. If boxes contain non-case file records, please indicate the type of records and date range (if applicable) on the manifest. The RIM Team can provide a template for the manifest upon request. The program should include a printed manifest in each box, in addition to providing a master electronic manifest to the RIM Team.
- q. Boxes should have a box label on the outside with the name of the program, the date range of the case files included in the box, and a numerical identifier for each box. The RIM Team can provide a template for box labels upon request.
- r. If the program has electronic versions of the case files in addition to paper files, the program must provide the electronic copies to the RIM Team. The RIM Team will provide a secure dropbox link where the electronic files can be uploaded.
- s. To receive approval to send a shipment of records to ORR's records storage facility, the COR must provide the RIM Team with the following:
 - (5) The address where the records are currently located/stored;
 - (5) The total number of boxes that need to ship;
 - (5) An electronic copy of the manifest for each box included in the shipment;
 - (5) A picture of the completed boxes that the program has packaged to confirm they were packaged correctly; and
 - (5) Copies of electronic versions of the casefiles and other ORR records or data, shared via secure drop box or other secure, web-based format.
- t. Once the above information has been provided to the RIM Team, they will begin the review process for approval. Once approval is given, the RIM Team will provide the addresses where electronic files and paper records will be shipped. Please note, any shipments that are sent without RIM Team approval will be returned to the program at their expense. At the end of this process, the program will provide a records transmittal receipt attesting that they have turned over all records to ORR. The ORR RIM Team will provide the records transmittal receipt document at the time of shipment approval.
- u. The Contractor is responsible for allocating funds in the budget for the shipment of all original records to ORR in six (6) month intervals or upon ORR's request. The contractor must coordinate with the COR and the ORR Records Management Team to schedule, receive approval for, and execute shipments of records to ORR's Federal Records Center (FRC). The Contractor is also responsible for procuring loading and transportation services for the shipment of records to ORR.

2.10.2 Flow Down of Records Requirements to Subcontractors:

- a. The Contractor shall incorporate the substance of this clause, its terms and requirements including this paragraph, in all subcontracts under this contract, and require written subcontractor acknowledgment of same.

- b. Violation by a subcontractor of any provision set forth in this clause will be attributed to the Contractor.
- c. Contractor shall develop, maintain, and safeguard individual client case records. Agencies and organizations are required to develop a system of accountability which preserves the confidentiality of client information and protects the records from unauthorized use or disclosure in accordance with all applicable laws, regulations, and policies.
- d. Contractor shall ensure that any downstream entity (subcontractor, vendor, consultant, etc.) with access to Agreement-related information complies with all applicable privacy and security requirements.
- e. Contractor shall obtain written assurances that downstream entities will protect information appropriately.
- f. The Prime Contractor remains responsible for the acts, omissions, and failures of its downstream entities involved in the work.

2.10.3 Safeguarding of Records and Personally Identifiable Information (PII):

- a. Contractor shall develop, maintain, and safeguard individual client case records, to include native, paper, and electronic records. Casefiles must be stored in locked file cabinets in climate-controlled spaces with policies in place to prevent unauthorized access, destruction, theft, or contamination. Spaces where records are stored must have two layers of protection including locked file cabinets that are within locked rooms only accessible by authorized personnel.
- b. Agencies and organizations are required to develop a system of accountability which preserves the confidentiality of client information and protects the records from unauthorized use or disclosure in accordance with all applicable laws, regulations, and policies.
- c. Contractor shall safeguard all PII it collects, generates, maintains, or uses in furtherance of its contractual obligations.
- d. Contractor shall restrict access to PII to individuals who require it to perform their authorized duties/functions.
- e. Contractor shall store, transmit, and dispose of PII using secure methods appropriate to its sensitivity.
- f. Contractor shall follow any additional PII protection requirements issued by HHS/ACF.

2.10.4 General Records and Data Information Security Requirements

- a. Contractor shall implement reasonable administrative, physical, and technical safeguards to protect information handled under the contract.
- b. Security practices shall reflect generally accepted industry standards and be scaled to the nature and sensitivity of the data.
- c. Contractor shall follow applicable HHS/ACF policies regarding information security, as well as security instructions provided in writing.
- b. Contractor shall adhere to baseline security standards, including but not limited to:
 - (5) Protecting data in transit and at rest, using encryption where appropriate, consistent with HHS and ACF policy.
 - (5) Maintaining updated security protections, such as anti-virus, anti-malware tools, and timely software patches.
 - (5) Using access controls that restrict system and data access to authorized users.
 - (5) Maintaining basic logging or documentation of system activity sufficient to support

- investigation of incident or breach.
- (5) Using secure authentication for remote access, when remote access is used.

2.10.5 Data Breach Response Preparation, Reporting Requirements, and Liability

- a. Contractor is responsible for ensuring that procedures are in place to respond to a data breach. The plan must include, but is not limited to, the following:
 - b. Acting immediately to contain the issue, mitigate further exposure, assess impact to affected individuals and systems, and preserve relevant information, logs, and other artifacts to support ACF breach response activities and investigations.
 - c. Reporting breaches involving PII directly to ACF (acf_irt@acf.hhs.gov) and to the COR within one (1) hour of discovery and cooperate with ACF's breach response investigations and audits.
- (6) The initial report should include, if known:
- (c) A general description of the incident or breach, including the date, time, and location of the breach.
 - (c) The types of information involved (e.g. PII, program data, specific data elements, sensitivity), as well as the quantity of information affected.
 - (c) Steps taken to contain or mitigate the incident.
- (6) Unless otherwise required by law and absent the threat of imminent harm to the impacted individuals, the Contractor should not notify the affected individuals or external parties, unless authorized, in writing by ACF.
- (c) Conducting a forensic audit to determine the cause of the breach and full scope of the impact of the breach on all affected individuals, systems, and information, as well as a report with the audit findings submitted to ACF.
 - (c) Developing a written remedial plan to ensure future breaches do not occur submitted to ACF.
 - (c) If Contractor or a downstream entity engages a digital forensics vendor, that vendor shall:
- (6) Follow reasonable evidence-preservation and forensic investigation practices.
- (6) Protect any PII or sensitive information reviewed during the investigation.
- (6) Provide summary reports sufficient for the Contractor to meet its obligations to ACF; and
- (6) Comply with the same breach reporting requirements contained in this Contract.
- (a) If the breach results from the Contractor's failure to follow the requirements of this Contract or reasonable security practices, the Contractor may be responsible for associated costs or corrective actions, as allowed by law or contract.

2.10.6 Records Training Requirements

- a. All Contractor personnel assigned to this contract who create, work with, or otherwise handle records are required to take HHS/ACF provided records management training, annually. The Contractor is responsible for confirming training has been completed according to agency policies, including initial training and any annual or refresher training.
- b. Contractor personnel shall maintain documentation showing training completion.
- c. Contractor personnel performing specialized roles (e.g., system administration, security analysts, etc.) should have training appropriate to their responsibilities.

2.11 TASK ELEVEN: Security Requirements

2.11.1 Baseline Security Requirements

Applicability. The requirements herein apply whether the entire contract, or portion thereof, includes either or both of the following:

- a. Access (Physical or Logical) to Government Information: A Contractor (and/or any subcontractor) employee will have or will be given the ability to have, routine physical (entry) or logical (electronic) access to government information as required to perform their work. Access is contingent upon positive adjudication of background check.
- b. Operate a Federal System Containing Information: A Contractor (and/or any subcontractor) will operate a federal system and information technology containing data that supports the ACF mission. In addition to the Federal Acquisition Regulation (FAR) Subpart 2.1 definition of “IT”, the term as used in this section includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources.

Safeguarding Information and Information Systems. In accordance with the Federal Information Processing Standards Publication (FIPS) 199, *Standards for Security Categorization of Federal Information and Information Systems*, the Contractor (and/or any subcontractor) must:

- a. Protect government information and information systems in order to ensure:
 - Confidentiality, which means preserving authorized restrictions on access and disclosure, based on the security terms found in this contract, including means for protecting personal privacy and proprietary information;
 - Integrity, which means guarding against improper information modification or destruction, and ensuring information non-repudiation and authenticity; and
 - Availability, which means ensuring timely and reliable access to and use of information.
- b. Provide security for any Contractor systems, and information contained therein, connected to an HHS network or operated by the Contractor on behalf of ACF regardless of location.
- c. Adopt and implement the policies, procedures, controls, and standards required by the HHS Information Security Program to ensure the confidentiality, integrity, and availability of government information and government information systems for which the Contractor is responsible under this contract or to which the Contractor may otherwise have access under this contract.
- d. Comply with the Privacy Act requirements and tailor FAR clauses as needed.

Information Security Categorization. In accordance with FIPS 199 and National Institute of Standards and Technology (NIST) Special Publication (SP) 800-60, *Volume II: Appendices to Guide for Mapping Types of Information and Information Systems to Security Categories*, Appendix C, and based on information provided by the Information System Security Officer, Chief

Information Security Officer, or other security representative, the risk level for each Security Objective and the Overall Risk Level, which is the highest watermark of the three factors (Confidentiality, Integrity, and Availability) of the information or information system. The contractor must work with the ACF security team to categorize information or information systems. The categorization can change at any time throughout the lifecycle of the system. The contractor shall ensure proper controls are implemented based on the categorization.

Controlled Unclassified Information (CUI). CUI is defined as “information that laws, regulations, or Government-wide policies require to have safeguarding or dissemination controls, excluding classified information.” The Contractor (and/or any subcontractor) must comply with *Executive Order 13556, Controlled Unclassified Information, (implemented at 3 Code of Federal Regulation (CFR), part 2002)* when handling CUI. 32 CFR. 2002.4(aa) As implemented the term “handling” refers to “...any use of CUI, including but not limited to marking, safeguarding, transporting, disseminating, re-using, and disposing of the information.” 81 Fed. Reg. 63323. All sensitive information that has been identified as CUI by a regulation or statute, handled by this solicitation/contract, must be:

- a. marked appropriately;
- b. disclosed to authorized personnel on a Need-To-Know basis;
- c. protected in accordance with NIST SP 800-53, *Security and Privacy Controls for Federal Information Systems and Organizations* applicable baseline if handled by a Contractor system operated on behalf of the agency, or NIST SP 800-171, *Protecting Controlled Unclassified Information in Nonfederal Information Systems and Organizations* if handled by internal Contractor system; and
- d. returned to ACF control, destroyed when no longer needed, or held until otherwise directed. Destruction of information and/or data must be accomplished in accordance with NIST SP 800-88, *Guidelines for Media Sanitization*.

Protection of Sensitive Information. For security purposes, information is *or* may be sensitive because it requires security to protect its confidentiality, integrity, and/or availability. The Contractor (and/or any subcontractor) must protect all government information that is or may be sensitive in accordance with Office of Management and Budget (OMB) Memorandum M-06-16, *Protection of Sensitive Agency Information* by securing it with a FIPS 140-2 validated solution.

Confidentiality and Nondisclosure of Information. Any information provided to the contractor (and/or any subcontractor) by ACF or collected by the contractor on behalf of ACF will be used only for the purpose of carrying out the provisions of this contract and must not be disclosed or made known in any manner to any persons except as may be necessary in the performance of the contract. The Contractor assumes responsibility for protection of the confidentiality of Government records and will ensure that all work performed by its employees and subcontractors will be under the supervision of the Contractor. Each Contractor employee or any of its subcontractors to whom any ACF records may be made available or disclosed will be notified in writing by the Contractor that information disclosed to such employee or subcontractor can be used only for that purpose and to the extent authorized herein.

The confidentiality, integrity, and availability of such information must be protected in accordance with HHS and ACF policies. Unauthorized disclosure of information will be subject to the HHS/ACF sanction

policies and/or governed by the following laws and regulations:

- a. 18 U.S.C. 641 (Criminal Code: Public Money, Property or Records);
- b. 18 U.S.C. 1905 (Criminal Code: Disclosure of Confidential Information); and
- c. 44 U.S.C. Chapter 35, Subchapter I (Paperwork Reduction Act).

Internet Protocol Version 6 (IPv6). All procurements using Internet Protocol must comply with OMB Memorandum M-05-22, *Transition Planning for Internet Protocol Version 6 (IPv6)*.

Websites and Digital Services. All new and existing public-facing government websites must comply with the Integrated Digital Experience Act.

Government Websites. All new and existing public-facing government websites must be securely configured with Hypertext Transfer Protocol Secure (HTTPS) using the most recent version of Transport Layer Security. In addition, HTTPS will enable HTTP Strict Transport Security to instruct compliant browsers to assume HTTPS at all times to reduce the number of insecure redirects and protect against attacks that attempt to downgrade connections to plain HTTP. For internal-facing websites, the HTTPS is not required, but it is highly recommended.

Contract Documentation. The Contractor must use provided templates, policies, forms and other agency documents, if applicable, to comply with contract deliverables as appropriate.

Standard for Encryption. The Contractor (and/or any subcontractor) will

- a. Comply with the HHS Standard for Encryption of Computing Devices and *Information* to prevent unauthorized access to government information.
- b. Encrypt all sensitive federal data and information (i.e., PII, PHI, proprietary information, etc.) in transit (i.e., email, network connections, etc.) and at rest (i.e., servers, storage devices, mobile devices, backup media, etc.) with FIPS 140-2 validated encryption solution.
- c. Secure all devices (i.e.: desktops, laptops, mobile devices, etc.) that store and process government information and ensure devices meet HHS and ACF-specific encryption standard requirements. Maintain a complete and current inventory of all laptop computers, desktop computers, and other mobile devices and portable media that store or process sensitive government information (including PII).
- d. Verify that the encryption solutions in use have been validated under the Cryptographic Module Validation Program to confirm compliance with FIPS 140-2. The Contractor must provide a written copy of the validation documentation to the COR prior to implementation of the solution.
- e. Use the Key Management system on the HHS personal identification verification card or establish and use a key recovery mechanism to ensure the ability for authorized personnel to encrypt/decrypt information and recover encryption keys. Encryption keys will be provided to the COR upon request and at the conclusion of the contract.

Contractor Non-Disclosure Agreement (NDA). Each Contractor (and/or any subcontractor) employee having access to non-public government information under this contract must complete the ACF non-disclosure agreement. A copy of each signed and witnessed NDA must be submitted to the CO, CS, and COR prior to performing any work under this acquisition.

Privacy Threshold Analysis (PTA)/Privacy Impact Assessment (PIA) – When applicable, the Contractor must assist the ACF Senior Official for Privacy (SOFP) or designee with conducting a PTA for the information system and/or information handled under this contract to determine whether or not a full PIA needs to be completed.

- a. If the results of the PTA show that a full PIA is needed, the Contractor must assist the ACF SOP or designee with completing a PIA for the system or information within *30 days* after completion of the PTA and in accordance with HHS policy and OMB M-03-22, *Guidance for Implementing the Privacy Provisions of the EGovernment Act of 2002*.
- b. The Contractor must assist the ACF SOFP or designee in reviewing the PIA at least every **three years** throughout the system development lifecycle/information lifecycle, or when determined by the agency that a review is required based on a major change to the system, or when new types of PII are collected that introduces new or increased privacy risks, whichever comes first.

All information and data related to this project that the Contractor gathers or obtains will be both protected from unauthorized release and considered the property of the government. The CO will be the sole authorized official to release verbally or in writing any data, draft deliverables, final deliverables, or any other written or printed materials pertaining to this contract.

Press releases, marketing material, or any other printed or electronic documentation related to this project must not be publicized without the written approval of the CO.

2.12 TASK TWELVE: TRANSITION-OUT SERVICES

2.12.1 Subtask: Transition-Out

The contractor shall develop, maintain, and implement a Transition-Out Plan. Transition-out activities consist of the coordination and execution of all activities necessary to transition Case Coordination services to a successor contractor. The Transition-out will be performed concurrently during the contract performance period (option year or subsequent extensions) and shall occur over a period not to exceed 90 calendar days. The transition-out period may occur at the end of any performance period. On-going ORR services are performed under the respective CLINS and Transition-out services represent those additional services necessary to execute the transition.

The transition-out objectives are to assist ORR in the transition to any future solicitation(s) or restructuring of future services, to ensure the successful transition of all activities to the incoming contractor, and to make every reasonable effort to ensure that there is no interruption in critical services during the transition-out period.

The contractor shall provide Transition-Out support including:

- (a) Coordinate and cooperate with ORR and incoming contractors and provide all reasonable assistance to ensure a successful transition.
- (b) Provide full access to its facilities and personnel to enable ORR and incoming contractors to observe the performance of the contractor's day-to-day activities necessary to perform under the TO.

- (c) Ensure that activities performed under the contract have been adequately documented and provide copies in electronic and/or hard copy format to ORR.
- (d) Update and provide ORR's electronic and hard-copy documentation including but not limited to process flows, network diagrams, systems documentation, policies, and procedures necessary to perform activities under the contract.
- (e) Establish and maintain effective communication with the incoming contractor and Government personnel for the period of the transition via weekly status meetings or as often as necessary to ensure a seamless transition-out.
- (f) Perform the applicable tasks as outlined in ***Task One – Transition- In-Services*** applicable to a Transition-Out from the incumbent contractor to the incoming contractor/Government personnel.

2.12.2 Transition-Out Plan

The Transition-Out Plan shall facilitate the accomplishment of a seamless transition from the incumbent contractor to the incoming contractor/Government personnel at the expiration of the contract.

The contractor shall:

- (a) Provide a comprehensive draft Transition-Out Plan within thirty (30) calendar days of project start. ORR will work with the contractor to finalize the Transition-Out Plan. The contractor shall provide the final Transition-Out plan within ten (10) business days of receiving ORR's comments on the draft plan.
- (b) The Transition-Out Plan shall identify how the contractor will coordinate with the incoming contractor and/or ORR to transfer knowledge about:
 - (1) Program and project management processes.
 - (2) All applicable Points of contact.
 - (3) Location and inventory of technical and project management documentation.
 - (4) Status of ongoing technical and operational initiatives.
 - (5) Appropriate contractor-to-contractor coordination to ensure a seamless transition.
 - (6) Transition of Key Personnel knowledge.
 - (7) Schedules and milestones; and
 - (8) Actions required of the Government.
- (c) In the Transition-Out Plan, the contractor shall demonstrate its understanding of ORR's transition objectives, how they would be achieved, and how success will be measured.
- (d) In the Transition-Out Plan, the contractor shall acknowledge the material and information that was 'transitioned in' to the contractor after receiving the TO award. The contractor shall also acknowledge the materials and information it obtained and paid for under the performance of this TO. Both sets of information shall be transitioned out to ORR and or future contractors. The plan shall identify any activities or restrictions with respect to cooperation or knowledge asserted to be proprietary to the contractor.
- (e) The Transition-Out Plan shall include a detailed project plan that identifies how all the applications, and all supporting data, documentation, and business processes will be migrated to a new vendor. This includes the identification and transfer of all SOPs and any historical documents.
- (f) Detail all specific tasks and systems, by functional area, that need to be transitioned and their expected completion dates.
- (g) At a minimum, the Transition-Out Plan shall be reviewed and updated on an annual basis; and updated quarterly during the final Option Period.
- (h) The contractor shall implement its Transition-Out Plan NLT 90 calendar days before the expiration of the contract. The transition-out period may occur at the end of any performance period.

3.0 Contract Quality

The Contractor shall perform effective quality planning, quality assurance, and quality control in accordance with this section to ensure at least acceptable contract performance and delivery of contract conforming services and deliverables.

General quality definitions:

- a. **Acceptable Quality Level (AQL):** The minimally acceptable level of performance and the maximum allowable deviation or error rate from the performance standard. The purpose is to provide a specific, allowable leeway or variance from the performance standard before a service is non-conforming. AQLs are applicable only when a variance from the standard is acceptable.
- b. **Corrective Action Request (CAR):** A formal (written) request issued to the Prime Contractor to address and correct government-identified performance deficiencies and contractual non-conformances. CARS range from Level I to Level IV, each justifying an elevated level of Contractor management engagement. In effective corrective action or a pattern of similar CARs at any level may justify elevation to a higher level.
 - (1) **Level I:** For a minor non-conformance that can generally be corrected on-the-spot or in a short time period with no corrective action required. Requested by COR
 - (2) **Level II:** For a minor non-conformance but which requires a formal Corrective Action Plan (CAP) to address the issue and to mitigate the risk of recurrence. Requested by COR
 - (3) **Level III:** For a major non-conformance; requires a formal CAP to address the issue and to mitigate the risk of recurrence. May impact overall contract performance, safety or security, and/or ORR mission. Contractor senior leader engagement is expected. Requested by COR and CO.
 - (4) **Level IV:** For a critical non-conformance; requires a formal CAP to address the issue and to mitigate the risk of recurrence. Will likely or is negatively impacting overall contract performance, safety or security, and/or ORR mission. Requires highest level of Contractor senior leader engagement. Requested by COR and CO.
- c. **Non-Conformance:** A failure to provide a specified deliverable to the established standard or to meet a specified requirements or standards in contract performance.
- d. **Performance Deficiency:** Inadequate or substandard performance by the Contractor or a subcontractor under the terms of the contract.
- e. **Performance standard:** the specific, measurable criteria for performance quality that the Contractor is required to meet or exceed. Performance standards are identified under tasks and within Section 4.0, Delivery of Deliverables / PRS.

f. Quality Assurance (QA):

(1) Contractor: The Contractor's procedures and activities to monitor and verify that processes used to manage and create the deliverables and perform services are followed and are effective.

(2) Government: The functions the Government performs to determine whether a contractor has fulfilled the contract obligations regarding quality and quantity. It encompasses inspection, acceptance, and other measures to ensure conformity with contract requirements.

g. Quality Control (QC): The Contractor's responsibility to control the quality of products, services, and deliverables required under the contract, to tender only conforming items/services, establish an effective inspection system acceptable to the Government, and maintain evidence of compliance.

h. Quality Planning (QP): The process of defining standards and procedures to ensure project deliverables meet customer requirements. Output includes a Quality Management Plan (QMP) covering QC, QA, and Quality Improvement/continuous improvement processes, quality metrics, checklists, improvement plans, and quality baselines.

i. Quality Improvement: Synonymous with continuous improvement. A proactive and deliberate effort to continually enhance processes, reduce waste, improve performance, and maintain or exceed quality goals. Documented in Process Improvement Plans requiring metrics, analysis, and performance targets.

3.1 Contractor Quality Management Plan

The Contractor is responsible for its quality planning and control and contract compliance. The Contractor shall have a QMP with processes that addresses effective QP, QC, QA, continuous Quality Improvement, and how the contractor shall support the Government's QA of service deliverables and contract performance.

The Contractor shall submit the initial QMP to the Contracting Officer's Representative (COR) no later than thirty (30) calendar days after contract award. Following Government review, the Contractor shall submit a revised QMP within ten (10) calendar days of receipt of Government comments. The QMP is a living document and shall be updated as necessary throughout the period of performance to reflect changes in contract requirements, operations, or quality processes.

At a minimum, the Contractor shall review and update the QMP annually and submit the updated QMP to the COR no later than ninety (90) calendar days prior to the end of each annual period of performance. All QMP updates are subject to COR review and acceptance.

The QMP shall include, at a minimum, these components:

a. Project Deliverables & Project Processes: The project deliverables and processes are subject to quality review.

- b. Deliverable Quality Standards: The quality standards are the “measures” used to determine a successful outcome for deliverables, services, and requirements. These standards may vary depending on the specific service/requirement.
- c. Customer Satisfaction: The customer satisfaction criteria describe when each deliverable is complete and acceptable as defined by the customer. Deliverables are evaluated against these criteria and the contract.
- d. Quality Control Activities: The quality control activities monitor and verify that the project deliverables and service provided meet defined quality standards.
- e. Process Quality Standards: The quality standards are the “measures” used to determine if project work processes are being followed.
- f. Stakeholder (government and internal) Expectations: Stakeholder expectations describe when a project process is effective as defined by the project stakeholders. An example is the review and approval of all high-impact changes to the project.
- g. Quality Assurance Activities: The Contractor quality assurance activities that monitor and verify that processes used to manage and create the deliverables are followed and are effective.
- h. Quality Improvement: Ensure that quality is constantly improving and that non-conformances are corrected and receive root cause analysis and corrective action when appropriate or otherwise requested by the government.
- i. Risk Surveillance and Mitigation: Risk identification, assessment, tracking and mitigation activities documented in the Risk Management Plan described under 2.2.3 Subtask shall serve as the authoritative source for risk management under this contract and shall be used to support the quality surveillance activities to identify, prioritize and implement corrective actions, and continuous improvement measures outlined in this section. The Contractor shall notify the COR in writing within five (5) business days of identifying a “High” risk rating.
- j. Quality Measurement and Continuous Improvement: The Contractor shall develop, identify in its QMP, and use in its management of the project, meaningful quantitative performance metrics to evaluate quality of deliverables and services under the contract. Metrics shall be based on measurable indicators aligned with the Government’s QASP and support the deliverables and performance requirements identified in this contract.
- k. Contractor developed quality metrics shall include, but are not limited to:
 - (1) Timeliness: Percentage of deliverables submitted by the due date.
 - (2) Accuracy: Number of revisions required by the Government due to errors or omissions.
 - (3) Compliance: Percentage of deliverables meeting Section 508, Plain Writing Act, and formatting standards.
 - (4) Customer Satisfaction: Feedback ratings from federal staff or end-users (collected quarterly).
 - (5) Resolution Rate: Percentage of helpdesk or task issues resolved within SLA timelines.

The Contractor shall perform quarterly trend analyses of performance metrics to identify positive performance, negative performance, and recurring deficiencies. The Contractor shall self-identify the need for and take corrective action of any such deficiencies. The Contractor shall include in its monthly progress report performance against its quantitative performance metrics and any related corrective action.

1. Roles and Responsibilities: Describes the roles and responsibilities of contractor stakeholders (at both the prime contractor and sub-contractor levels) in the quality management process.

During performance, the Government reserves the right to reject the QMP if the COR or CO determines the QMP to be deficient or insufficient to adequately drive quality assurance. The QMP is a living document that should be changed, as conditions change, during contract performance. The Contractor may propose a QMP revision at any time. If COR acceptance of the QMP is withdrawn, the Contractor must address the issues and present a revised QMP within ten (10) calendar days.

The Contractor shall use the accepted QMP and the Government QASP to guide and document the implementation of required management and quality control actions.

3.2 Quality Assurance Surveillance Plan and Government Surveillance

a. QASP:

- (1) The Government will develop, and share with the Contractor, a QASP. The Government's QASP, in conjunction with surveillance matrixes developed by the Government in coordination with the Contractor after award, define how (frequency and method) the Government will conduct quality assurance and surveillance to ensure the effectiveness of the Contractor's PMP, and the QMP. The QASP will help determine that all deliverables and tasks/services fully conform to contract requirements and the validity of the Contractor's invoices. The QASP and the resultant Government surveillance will inform the Government's contract risk assessment. QASP will also address contract non-conformance, corrective action requests, and required actions by the Contractor when a non-conformance is identified.
- (2) Upon receipt of QASP revisions, the Contractor must review and modify, if necessary, the QMP. Necessary QMP revisions shall be provided to the COR within ten (10) calendar days of receipt of QASP revisions. The Contractor is encouraged to offer the COR QASP and surveillance matrix feedback and revision suggestions based on its knowledge of the services performed under the contract, overall quality program, and risk assessments.

b. Government Surveillance:

- (1) The COR will share with the Contractor their surveillance quantitative assessment results methodology. The overall performance requirements of Government surveillance is located in Section 4.
- (2) The Contractor shall support Government virtual and on-site risk-based surveillance and QA activities through transparent access to project management documents, sharing with ORR results of internally conducted QC activities, making Contractor personnel and their work

products available for surveillance interviews or work product inspection, participating with ORR personnel in Government surveillance activities when requested/appropriate, completing performance surveys, and providing feedback to the COR regarding QASP revisions, surveillance matrices, government surveillance results/findings, and government risk assessments.

- c. **Non-Conformances and Government Corrective Action Requests:** The Contractor shall follow the non-conformance Corrective Action Request (CAR) response procedures and formats identified in the QASP. Contractor responses to CARs, as defined in the QASP, will include for Level II and above CARs an effective Corrective Action Plan (CAP) within fifteen (15) calendar days of receipt of a CARs, unless a different number of days is identified in the CAR. The Contractor shall fully implement corrective actions IAW with Government approved CAPs and continue to monitor the effectiveness of corrective actions to mitigate or eliminate risk of recurrence.

Per FAR Part 52.246-4 Inspection of Services-Fixed-Price and FAR Part 52.246-6 Inspection Time-and-Material and Labor-Hour, the Government has the right to inspect and test all services called for by the contract, to the extent practicable at all times and places during the term of the contract. The Government will perform inspections and tests in a manner that will not unduly delay the work.

4.0 Delivery of Deliverables / Performance Requirement Summary (PRS)

This table is a combination list of deliverables and PRS. While this table defines many key deliverables and performance requirements for the contract, the Contractor remains accountable for all deliverables, performance requirements, and terms and conditions defined throughout the PWS and contract. This table takes precedence if any of its delivery or format requirements conflicts, or inconsistencies exist, with other language throughout the PWS. This table may shorten some descriptions and language for the purpose of conciseness.

PWS Section	Standard				Acceptable Quality Level
	Deliverable /Requirement	Timing and Frequency	Medium/Format	Recipient	
2.1 Task One – Transition-In Services					
2.1 and 2.1.1 Transition-In Services and Plan	Contractor shall complete transition-in activities within 90 calendar days and submit required Transition-In Plan revisions in accordance with timelines specified in the PWS.	Plan: 3 business days post-kickoff; Transition: within 90 days; Updates: as requested	MS Office Suite Applications	COR/CO	N/A
2.2 Task Two – Project Management					
2.2.1 Kick-off Meeting	Contractor shall conduct a kick-off meeting within 10 business days of award (or as directed by the COR) and submit required ACF OCIO intake documentation within 5 business days of award.	Within 10 business days of award	MS Teams / Email Summary	COR/ACF ORR/CO	N/A

PWS Section	Standard				Acceptable Quality Level
	Deliverable /Requirement	Timing and Frequency	Medium/Format	Recipient	
2.2.2 Project Management Plan (PMP), Communications Plan, and Work Plan	Contractor shall submit the initial revised PMP within 15 business days after the kick-off meeting and maintain the PMP, including a Contract Management Plan and Communications Plan, throughout the period of performance. Contractor shall submit required deliverables in accordance with the timelines specified in the PWS and update such plans as required.	Initial revised PMP: Within 15 business days after the kick-off meeting; Revisions: Within 10 business days of receipt of COR comments or revision requests; updates as required/annually	MS Office Suite Applications	COR/ (CO for approval as required)	N/A
2.2.3 Risk Management Plan	Contractor shall develop and maintain a Risk Management Plan, including an Issue/Risk Log, and conduct an initial joint risk assessment with the COR during Transition-In. The contractor shall review and update risks and issues on an ongoing basis with the COR.	Initial at Transition-In; updated bi-weekly	MS Office Suite Applications	COR	N/A
2.2.4 Progress Reports	Contractor shall submit monthly progress reports in accordance with the PWS.	Monthly (within 15 calendar days of month-end)	MS Office Suite Applications	COR	N/A
2.2.5 Staffing Reports	Contractor shall submit staffing reports and notifications in accordance with the PWS.	Weekly (every Monday); staffing changes within 24 hours	MS Office Suite Applications	COR/FFS	N/A
Task Three – Safe and Timely Release					
2.3 Safe and Timely Release Recommendations	Contractor shall support safe and timely release of Unaccompanied Alien Children (UAC) by reviewing release requests and submitting independent release recommendations in accordance with ORR policy and child welfare best practices. Contractor shall meet all required review, response, and documentation timelines specified in the PWS, including entry of recommendations in the UAC Portal.	Ongoing; per case timelines defined by ORR policy	UAC Portal Entry / Report	COR/ ORR Program Staff	95% of recommendations completed within required timeframe, corrected to 100% if requested by COR; COR reviews via portal audit. Includes documentation of priority planning, coordination with care providers and FFS, and use of ORR data tools (e.g., TKPI) as required.
Task Four – Tracking and Management of Complex Cases					
2.4 Tracking and Management of Complex Cases	Contractor shall track and manage complex cases and support release, transfer, and placement recommendations in accordance with ORR policy and timelines	Ongoing; weekly reporting; per case timelines	UAC Portal; TKPI; PDF/Word as applicable	COR/FFS/Program Staff	100% of identified complex cases tracked; consultation and transfer/placement recommendations documented and verifiable in

PWS Section	Standard				Acceptable Quality Level
	Deliverable /Requirement	Timing and Frequency	Medium/Format	Recipient	
	specified in the PWS, including documentation in the UAC Portal and use of designated ORR data tools.				portal or reports.
Task Five - Staffing					
2.5 Staffing	Contractor shall provide and maintain qualified case coordination staffing, including compliance with staffing ratios, and reporting in accordance with ORR requirements and the PWS.	Ongoing; Monthly report due within 15 calendar days after month end	UAC Portal; Tableau/TK PI; MS Office Suite Applications	COR/ORR Program Staff/FFS	N/A
2.5.1 Staffing Plan	Contractor shall submit and maintain a Staffing Plan and staffing coverage in accordance with the PWS.	Update provided within 30 calendar days of award; update as needed	MS Office Suite Applications	COR	N/A
2.5.2 Scale Up/Scale Down Plan	Contractor shall plan for and implement scale-up and scale-down of Case Coordination services as directed by the CO with advice of the COR. Contractor shall submit required capacity fluctuation plans and implement approved staffing adjustments within the timelines specified in the PWS to maintain service continuity.	Plan: within 14 calendar days of request; Implementation per approved timelines	MS Office Suite Applications	COR/CO	N/A
2.5.4 and 2.5.5 Key Personnel and Substitution	Contractor shall provide and maintain COR-approved Key Personnel meeting the qualifications specified in the PWS and shall not replace Key Personnel without prior written concurrence of the CO. Contractor shall notify the CO and COR at least ten (10) calendar days in advance of any proposed substitution.	Prior to deployment; substitutions with 10 calendar days' notice	Email / Word Attachment	COR/CO	N/A
Task Six – Duty Stations with Care Providers and ORR Staff					
2.6.1 Weekly Visits	Contractor shall provide Case Coordinator coverage, visits, and reporting in accordance with the PWS.	Weekly	MS Office Suite Applications	COR/FFS Supervisor	N/A
2.6.2 Monthly Visits	Contractor shall conduct required monthly visits with assigned care providers, and document such activities in monthly reports submitted to the COR.	Monthly	MS Office Suite Applications	COR/FSS Supervisor	N/A
Task Seven – Training and Assistance					
2.7 Training and Assistance	Contractor shall develop and maintain an ORR-approved standardized training curriculum	Curriculum submitted with Contract	MS Office Suite Applications	COR	N/A

PWS Section	Standard				Acceptable Quality Level
	Deliverable /Requirement	Timing and Frequency	Medium/ Format	Recipient	
	and ensure all Case Coordinators complete required training prior to case assignment and annually thereafter. Contractor shall maintain training records and provide documentation to the COR upon request.	Management Plan; training prior to assignment and annually; updates as required			
Task Eight – Data Collection, Tracking, and Reporting					
2.8 Data Collection, Tracking, and Reporting	Contractor shall provide data collection, reporting, and system support in accordance with the PWS.	Ongoing; monthly summaries; ad hoc as requested	Excel / Tableau / PDF	COR	95% on-time reporting, corrected to 100% if requested by COR; 100% ad hoc requests completed by COR-requested deadline.
Task Nine – Background Investigation					
2.9 Background Investigation	Contractor shall comply with ORR background investigation, suitability, and conduct requirements in accordance with the PWS.	Ongoing; prior to hire	MS Office Suite Applications	COR	N/A
Task Ten – Records Management					
2.10 Records Management	Contractor shall manage, safeguard, and transfer all Federal records in compliance with applicable Federal laws, regulations, and ORR policies. Contractor shall protect PII, support litigation holds, report data breaches within required timeframes, flow down records requirements to subcontractors, and transfer records to ORR as directed.	Training within 10 days of onboarding; records transfer upon request or contract closeout; breach reporting within 1 hour	Paper records; Electronic files; PDF/Word; Excel (manifests)	COR/Records Management Team/ CO (as required)	N/A
Task Eleven – Security Requirements					
2.11 Security Requirements	Contractor shall comply with all Government information security, privacy, and confidentiality requirements in accordance with the PWS and applicable law.	Ongoing throughout period of performance; prior to system access	Security documentation; compliance artifacts; NDAs	COR/CO/AC F Security/Privacy Officials	N/A
Task Twelve – Transition-Out Services					
2.12 Transition-Out Services	Contractor shall submit the Transition-Out Plan and updates in accordance with the timelines specified in the PWS and complete transition-out activities within the required period to support an orderly transfer of services.	Draft: within 30 calendar days of start; Final: within 10 business days of comments; Execution: within 90 days	MS Office Suite Applications	COR/CO	N/A

PWS Section	Standard				Acceptable Quality Level
	Deliverable /Requirement	Timing and Frequency	Medium/Format	Recipient	
3.0 Quality Assurance (Section 3.0)					
3.0	The Contractor shall perform required quality management activities in accordance with the PWS.	N/A	N/A	N/A	N/A
3.1	Effective QMP with all required content per the requirements of this section.	QMP submitted NLT 30 calendar days after contract award; Final QMP within 10 calendar days of receiving comments. Changes as needed during performance Updated at least annually	MS Office Applications	CO/COR	N/A
3.2b	Contractor shall meet all surveilled contract requirements and deliverables as assessed by Government surveillance conducted in accordance with the QASP, with no Level II or higher non-conformances.	Surveillance frequency will be per the QASP and its surveillance matrix and as determined by the COR.	In person or by remote means	COR, PM, TCOR, ORR subject matter experts, ORR policy monitors	≥ 90% of surveillance results satisfactory or higher; recurring deficiencies ≤ 5%. Level II and higher CARs adequately addressed per the contract and QASP.
3.1, 3.2	Level II or higher non-conformance CAR - effective Corrective Actions (CA) submitted in the required time with all elements. Planned and Government accepted corrective action fully implemented IAW with the plan. Contractor continues to monitor effectiveness of CA.	Necessary corrections and risk mitigations taken as soon as practicable, as appropriate. CAP submitted within 15 calendar days of receipt of a CAR unless	MS Office Applications * or pdf as appropriate	COR (and CO for Level III and above)	N/A

PWS Section	Standard				Acceptable Quality Level
	Deliverable /Requirement	Timing and Frequency	Medium/Format	Recipient	
		directed otherwise in the CAR. CA fully implemented per the time/milestones defined in the CAR.			
5.0 Meetings (Section 5.0)					
5.0 Post-Award Kick-off Meeting	Contractor shall conduct a post-award kick-off meeting to establish shared understanding of contract requirements, roles, reporting, and initial coordination.	Within 10 business days of contract award, or as directed by the COR	Virtual or in-person meeting; MS Office Applications	COR / Government stakeholders, as directed	N/A
5.0 Intermittent Project Status Reviews	Contractor shall participate in intermittent project status reviews, as requested by the Government, to address emerging issues, risks, or coordination needs.	As directed by the COR or Contracting Officer	Virtual or in-person meeting; MS Office Applications	COR / Government stakeholders, as directed	N/A
5.0 Monthly Program Management Review (PMR)	Contractor shall conduct and lead a monthly PMR in accordance with the PWS.	Monthly	Virtual or in-person meeting; MS Office Applications	COR / Government stakeholders, as directed	N/A
6.0 Required Travel and Other Direct Costs (Section 6.0)					
6.0	Contractor shall comply with Federal travel requirements and COR travel approval processes in accordance with the PWS.	Quarterly travel plan submitted 2 weeks before the start of the next Federal fiscal year quarter. Ad-hoc trips submitted no less than 10 business days before the trip.	MS Office Suite Applications	COR	N/A
7.0 Additional Contract Terms (Section 7.0)					
7.7	Contractor shall comply with applicable IT governance, privacy, and confidentiality requirements in accordance with the PWS and applicable law.	Intake Form: within 5 business days of award; compliance ongoing.	Intake Request Form; compliance documentation	COR/ACF Tech Customer Engagement Team/CO (as required)	N/A

5.0 Meetings

For all meetings, the contractor will be responsible for providing meeting materials, and administrative and facilitation support. Meetings will be conducted at either the Office of Refugee Resettlement location at 330 C Street SW, Washington, DC 20201 or through an alternative method of communication (such as teleconferencing), as approved by the contracting officer.

- Post-Award Kick-off Meeting (See 2.2.1 Subtask: Kick-off Meeting)
- Intermittent Project Status Review
At the sole discretion of the government, intermittent project status reviews may be conducted on an informal basis virtually, as approved by the contracting officer or COR
- Monthly Program Management Review (PMR)
The contractor shall conduct a monthly PMR virtually, or in-person to report on program performance and progress. The contractor and the COR shall coordinate to establish the monthly meeting time and date. The PMR shall include a summary of the previous month's activities, projected activities for the upcoming period, performance trends, risks and issues and their mitigation strategies, and the financial status of the case coordination program (projected versus incurred costs). The Government will participate in the PMR to provide oversight and feedback. The Contractor shall provide written materials and verbal briefings and document action items and decisions resulting from the review.
- The COR will schedule on-site visits to verify compliance with contract requirements and performance standards. Visits will occur quarterly or as required.

6.0 Required Travel and Other Direct Costs (ODCs)

Contractor staff may be required to travel based on their position description and required sites could include: government sites and sites belonging to recipients of federal funding. Reasons for travel may include but are not limited to site visits and training (either providing or attending) and/or participation at a conference as directed by the Government. Location and frequency of travel will depend on the position held and the needs of the Government. Reimbursement for travel costs unrelated to specific services under this contract are prohibited.

6.1 General Travel Requirements

- a. The Contractor may be required to travel greater than 50 miles during performance of this contract. The Contractor may be authorized travel expenses at rates no higher than the substantive provisions of the Federal Travel Regulation (FTR).
- b. Travel must be necessary for performance of the contract.
- c. ORR is not reimbursing indirect costs and profit as part of travel.

6.2 Travel Planning and Approval

- a. The Contractor must submit a Travel Request (See delivery requirements in Section 3.0, Combined Delivery of Deliverables and PRS Table) for each individual traveler for review and approval. All TRs must include the following information:
 - (1) Name and title of traveler
 - (2) Dates of travel
 - (3) Destination(s)

- (4) Purpose of the trip, including which programs are to be visited if applicable; and
- (5) Estimated cost of the trip

- a. The TR must be reviewed and approved by the COR prior to travel.
- b. The Contractor shall work with federal staff to develop a Federal Fiscal Year (FY) quarterly travel plan. This plan will include all anticipated travel for the upcoming quarter. The travel plan will include all of the required information for a TR. The quarterly travel plan must be submitted to the COR, two (2) weeks before the start of the next FY quarter.
- c. Ad-hoc trips not included in the quarterly travel plan must be submitted to the COR no less than ten (10) business days before the start of the trip, except for emergency or mission critical travel. If the travel is for an emergency or is mission critical, this information must be provided to the COR with the TR.
- d. The contractor shall keep a summary of all travel that includes, at a minimum, the TR information.
- e. All travel must be pre-approved in writing by the COR prior to incurring any travel-related expenses (with individual or blanket request) 7.) Reimbursement will be made in accordance with applicable Federal Travel Regulations and must be supported by appropriate documentation, including receipts and travel vouchers

7.0 Additional Contract Terms

7.1 Prohibition Against Personal Services

The Contractor shall not perform personal services under this contract. All work shall be performed as independent contractor services in accordance with FAR 37.104, FAR Subpart 7.5, and HHSAR 307.104-70.

Contractor personnel are employees of the Contractor or its subcontractors and are under the administrative control, supervision, and direction of the Contractor. A Contractor supervisor must provide all individual Contractor employee assignments, performance oversight, and daily work direction.

The Government shall not:

- Directly supervise, control, or evaluate individual Contractor employees.
- Assign tasks or establish individual work priorities for Contractor personnel.
- Participate in or approve Contractor employee performance appraisals, timekeeping, or leave approval; or
- Represent or imply that Contractor employees are Federal employees, agents, or representatives.

Government personnel are responsible only for monitoring contract performance through the CO and COR, ensuring compliance with the contract terms and deliverables.

If at any time the Contractor believes a Government action or communication could create the appearance of a personal services relationship, the Contractor shall promptly notify the CO, CS, and COR in writing.

The Contractor shall not perform any inherently governmental functions as defined in FAR Subpart 7.5. No Contractor employee shall state orally or in writing that they are acting on behalf of the Government. The Contractor is responsible for ensuring that all employees assigned to this contract understand and are committed to these requirements.

7.2 Contractor Performance Evaluations

During the life of this contract, Contractor performance will be evaluated on an interim and final basis pursuant to FAR Subpart 42.15. The Contractor Performance Assessment Reporting System (CPARS) will be utilized for these reviews. Information on CPARS can be located at <http://www.cpars.gov>.

7.3 Restrictions on Contractor Access to Government or Third Party Information

The purpose of this clause is to set forth the restrictions that will govern Contractor employees access to Government or third party information in order to protect the information from unauthorized use or disclosure.

Under this contract, the Contractor will have access to Contractor proprietary information and other nonpublic information.

Restrictions on use and disclosure of information.

- a. With regard to any information to which the Contractor is given access in performance of this contract, whether the information comes from the Government or from third parties, the Contractor shall:
 - (1) Utilize the information only for the purposes of performing the services specified in this contract, and not for any other purposes;
 - (2) Safeguard information from unauthorized use and disclosure;
 - (3) Allow access to the information only to those employees who need it to perform services under this contract;
 - (4) Preclude access and disclosure of information to persons and entities outside of the Contractor's organization that do not have authority to access the information;
 - (5) Inform employees, who may require access to information, about their obligations to utilize it only to perform the services specified in this contract and to safeguard that information from unauthorized use and disclosure; and
 - (6) Ensure each employee complies with the restrictions set forth in (i), (ii), (iii), and (iv) above.
- b. Unless specifically permitted in writing by the CO, the Contractor shall not use information acquired in performance of the contract, or generated by or for the Government to:
 - (1) Compete for work for the Government; or
 - (2) Submit an unsolicited quote to the Government.
- c. If the Contractor is exposed to information that is marked in a way that indicates the Contractor should not receive this information, the Contractor shall:
 - (1) Notify the CO; and
 - (2) Use the information only in accordance with the instructions of the CO.

Breach of any of the conditions of this section of the contract may provide grounds for the Government to:

- a. Require the Contractor to remove the contract employee or employees from
- b. the performance of the contract;
 - (1) Require the Contractor to terminate the subcontractor;
 - (2) Suspend contractor payments;
 - (3) Terminate this contract for default or cause;
 - (4) Suspend or debar the Contractor for serious misconduct affecting present
- c. responsibility; and;
- d. Pursue such other remedies as may be permitted by law, regulation, or this contract.

Unauthorized disclosure or other misuse of information protected by the Privacy Act of 1974 may result in a fine up to \$5000 and /or other penalties. In addition, unauthorized disclosure or other misuse of information covered under the Federal Trade Secrets Act (18 USC 1905) may result in a fine, or imprisonment up to 1 year, or both.

The Contractor shall flow down this clause to subcontractors at all tiers.

7.4 Post Award Organizational Conflict of Interest (OCI)

The Contractor shall have programs in place to identify, report, and mitigate actual and potential conflicts of interest for itself, its employees, subcontractors and consultants. The existence of such programs and the disclosure of known actual or potential conflicts are material performance requirements of this contract.

The Contractor shall report all actual and potential conflicts of interest pertaining to this contract to the CO, including those that would be caused by a contemplated modification to this contract or another contract. Such reports shall be in writing (including by email). Upon request, the Contractor shall respond to a CO's request for an OCI mitigation plan.

In the event the CO determines that a conflict of interest exists, based on disclosure from the Contractor or from other sources, the CO shall take action which may include, but is not limited to, requesting a mitigation plan from the Contractor, terminating part or all of the contract, modifying the contract or obtaining a waiver in accordance with applicable law, including FAR 9.503 as applicable.

7.5 Department of Labor Wage Determinations

The applicable Standard Wage Determinations are incorporated into this contract.

7.6 Section 508 Accessibility Standards

Section 508 of the Rehabilitation Act, as amended by the Workforce Investment Act of 1998 (P.L. 105-220), requires Information and Communications Technology (ICT) to be accessible to people with disabilities when Federal agencies develop, procure, maintain, or use ICT. Federal employees and members of the public with disabilities must have access to and use of information and data comparable to people without disabilities.

All products, platforms, and services delivered as part of this work statement that are ICT, or contain ICT, must conform to the Revised 508 Standards, which are located at 36 C.F.R. § 1194.1 & Apps. A, B, C, & D, and available at <https://www.access-board.gov/ict/>. All requirements are applicable to support services and documentation deliverables. All functional performance criteria apply when using an alternative design or technology that achieves substantially equivalent or greater accessibility and usability by individuals with disabilities than would be provided by conformance to one or more of the requirements in Chapters 4-6 of the Revised 508 Standards, or when Chapters 4-6 do not address one or more functions of ICT.

A fully completed Accessibility Conformance Report (ACR) using the Voluntary Product Accessibility Template (VPAT) (<https://www.itic.org/policy/accessibility/vpat>) must be submitted for each proposed product, platform, or service. Evaluation of the VPAT will be on an Acceptable/Unacceptable basis.

Prior to acceptance of deliverables, the offeror must demonstrate conformance with the ACF Section 508 requirements via the applicable ACF Section 508 checklist(s) (<https://connect.acf.hhs.gov/rights-responsibilities/section-508> and/or [Section 508 | ACF Connect \(hhs.gov\)](https://connect.acf.hhs.gov)). The Government reserves the right to perform testing on required ICT items to validate the offeror's Section 508 conformance claims. If the Government determines the Section 508 conformance does not meet the ACF Section 508 requirements, the Government shall, at its option, require the offeror to remediate the item, at no additional cost to the Government, to align with the ACF Section 508 conformance requirements, before acceptance.

Section 508 ACF Acquisition Regulation Clauses

352.239-73(B) ELECTRONIC AND INFORMATION TECHNOLOGY ACCESSIBILITY

- (a) Pursuant to Section 508 of the Rehabilitation Act of 1973 (29 U.S.C. 794d), as amended by the Workforce Investment Act of 1998, all Information and Communications Technology (ICT) products and services developed, acquired, maintained, or used under this contract/order must comply with the "Electronic and Information Technology Accessibility Provisions" set forth by the Architectural and Transportation Barriers Compliance Board (also referred to as the "Access Board") in 36 CFR Part 1194. Information about Section 508 is available at <https://www.section508.gov>. The complete text of Section 508 Final Provisions can be accessed at <https://www.access-board.gov/ict>.
- (b) The Section 508 accessibility standards applicable to this contract/order are identified in the Statement of Work/Specification/Performance Work Statement. The Contractor must provide a written Section 508 conformance certification due at the end of each contract/order exceeding \$150,000 when the contract/order duration is one year or less. If the Government determines that ICT products and services provided by the Contractor do not conform to the described accessibility standards in the Product Assessment Template, remediation of the products or services to the level of conformance specified in the Contractor's Product Assessment Template will be the responsibility of the Contractor at its own expense.
- (c) In the event of a modification(s) to this contract/order, which adds new ICT products or services or revises the type of, or specifications for, products or services the Contractor is to provide, including ICT deliverables such as electronic documents and reports, the CO may require the Contractor to submit a completed Voluntary Product Assessment Template (VPAT) to assist the Government in determining that the ICT products or services support Section 508 accessibility standards. The

VPAT available at (<https://www.itic.org/policy/accessibility/vpat>) is equivalent to the HHS Product Assessment Template.

Prior to the CO exercising an option for a subsequent performance period/additional quantity or adding funding for a subsequent performance period under this contract, as applicable, the Contractor must provide the applicable, compliant ACF Section 508 Checklist(s) provided by the ACF Accessibility Program to the CO and Project Officer. Unless otherwise directed by the CO in writing, the Contractor shall provide the cited report in accordance with the Submission of Section 508 schedule.

Resources are available at [Section 508 | ACF Connect \(hhs.gov\)](#) and/or <https://connect.acf.hhs.gov/rights-responsibilities/section-508>. The Contractor's failure to submit a timely and properly completed report may jeopardize the CO's exercising an option or adding funding, as applicable.

Schedule for Contractor Submission of Section 508 compliant checklists (*Fill-in - To be determined by the CO.)

References:

- a. Section 508 Standards: <https://www.access-board.gov/ict>
- b. HHS Policy on Section 508 Compliance and Accessibility of Information and Communications Technology (ICT): <https://www.hhs.gov/web/governance/digital-strategy/it-policy-archive/hhs-policy-section-508-compliance-accessibility-information-communications-technology.html>
- c. ACF Accessibility and Section 508 Compliance Checklist(s) (<https://connect.acf.hhs.gov/rights-responsibilities/section-508> and/or [Section 508 | ACF Connect \(hhs.gov\)](#)).

7.7 ACF Tech IT Governance

The Contractor shall complete an ACF OCIO Intake Request Form within five (5) business days of award and submit to the ACF Tech Customer Engagement Team to formalize/start the ACF OCIO Governance Framework requirements.

7.8 Privacy Act

- a. The Privacy Act of 1974, as amended at 5 United States Code (U.S.C.) 552a, protects records that can be retrieved by personal identifiers such as a name, social security number, or other identifying number or symbol. These records are held in Privacy Act Systems of Records. The Privacy Act prohibits disclosure of PII or records without an individual's written consent unless one of the 12 disclosure exceptions enumerated in the Act applies. ORR treats information maintained in ORR systems of records on non-U.S. persons, including case files containing information about UAC and sponsors, as being subject to the administrative provisions of the Privacy Act (see UAC Policy Guide Section 5.9 Protecting the Privacy and Confidentiality of Unaccompanied alien children's Information).
- b. A notice of any such system of records is published in the Federal Register. The notices identify the legal authority for collecting and storing the records, individuals about whom records will be collected, what kinds of information will be collected, and the routine uses for the records.
- c. In accordance with Health & Human Services Acquisition Regulation Supplement (HHSAR)

- d. 352.224-70 Privacy Act, in addition to FAR clauses 52.224-1 Privacy Act Notification and 52.224-2 Privacy Act, when the Contractor is required to perform one or more of the following:
- (1) Creates, receives, maintains, or transmits “protected health information (PHI);” or
 - (2) Designs, develops, or operates a Federal agency “system of records,” to accomplish an agency function in accordance with the Privacy Act of 1974 (5 USC 552a (m) (1)), the contractor shall operate in conformance with the Privacy Act of 1974 (the Act), Public Law 93-579. The Contractor and its employees are liable to individuals injured as consequences of any subsequent failure to maintain records in conformance with the Act.
- e. In addition to the Privacy Act, the contractor shall ensure that its employees know and follow the prescribed rules of conduct in 45 Code of Federal Regulations (C.F.R.) Part 5b. Each Contractor employee and subcontractor shall be made aware that he/she is subject to criminal penalties for violations of the Privacy Act.
- f. See also:
- (1) HHSAR 352.224-71 Confidential Information.
 - (2) HHSAR 324.70 Health Insurance Portability and Accountability Act of 1996 and, Requirement identified elsewhere herein, if applicable, for Data Use Agreements.

7.9 Data Rights

- a. The Government has unlimited rights to all documents/material produced under this contract. All documents and materials, to include the source codes of any software, produced under this contract shall be Government owned and are the property of the Government with all rights and privileges of the ownership/copyright belonging exclusively to the Government. These documents and materials may not be used or sold by the contractor without written permission from the CO. All materials supplied to the Government shall be the sole property of the Government and may not be used for any other purpose. The right does not abrogate any other Government rights under the applicable Data Rights clause(s).
- b. All data collected by the Contractor or provided to the Contractor in the performance of this contract are the property of the Government. The Government retains all rights to the data used and all derivative works developed by the Contractor. The Contractor agrees that during performance of the contract and for a period of six (6) years after the completion of performance of this contract, the Contractor, including all divisions thereof, and any affiliate of the Contractor, any joint venture involving the Contractor, any entity into or with which it may subsequently merge or affiliate, or any other successor or assign of the Contractor, shall not supply information or material received from this contract, to the public or to any firm participating in or having a known prospective interest in the subject matter areas for which the sensitive information such as the name or mission of the government agency/department that provided the data was initially submitted.

8.0 Glossary of Abbreviations and Acronyms

Acronym	Definition
ACF	Administration for Children and Families

API	Application Programming Interfaces
AQL	Acceptable Quality Level
CAP	Corrective Action Plan
CAR	Corrective Action Request
CFR	Code of Federal Regulation
CLIN	Contract Line-Item Number
CO	Contracting Officer
COR	Contracting Officer's Representative
CS	Contract Specialist
CSR	Contract Status Reports
CUI	Controlled Unclassified Information
DHS	Department of Homeland Security
e.g.	“exempli gratia” – for example
FAR	Federal Acquisition Regulation
FFP	Firm Fixed Price
FIPS	Federal Information Processing Standards Publication
FOIA	Freedom of Information Act
GFP	Government Furnished Property
HHS	Department of Health and Human Services
HHSAR	Health & Human Services Acquisition Regulation Supplement
HS	Home Studies
HTTPS	Hypertext Transfer Protocol Secure
IAW	In accordance with
ICF	Influx Care Facility
IT	Information Technology
LTFC	Long-Term Foster Care
MSR	Monthly Status Report
NARA	National Archives & Records Administration
NDA	Non-Disclosure Agreement
NIST	National Institute of Standards and Technology
NLT	No Later Than
OCIO	Office of the Chief Information Officer
ODC	Other Direct Costs
OMB	Office of Management and Budget
OPM	Office of Personnel Management
OPTM	ORR Process & Technology Modernization
ORR	Office of Refugee Resettlement
PHI	Protected Health Information

PIA	Privacy Impact Assessment
PII	Personally Identifiable Information
PM	Program Manager
PMP	Project Management Plan
PRS	Performance Requirement Summary
PTA	Privacy Threshold Analysis
PWS	Performance Work Statement
QA	Quality Assurance
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Plan
QMP	Quality Management Plan
QP	Quality Planning
ROB	Rules of Behavior
RSF	Risk Surveillance Framework
SBCX	Small Business Customer Experience
SLA	Service Level Agreement
SOIP	Senior Official for Privacy
SOP	Standard Operating Procedures
SP	Special Publication
T&M	Time and Materials
TR	Travel Request
TKPI	Throughput Key Performance Indicators
U.S.C.	United States Code
UAC	Unaccompanied Alien Children
UACB	Unaccompanied Alien Children's Bureau
WBS	Work Breakdown Structure
WSR	Weekly Staffing Report

Note: This document may contain other abbreviations and acronyms that are defined at first use.

